

SITE SAFETY PLUS

Construction site health and safety

A: Legal and management



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Supporting INFORMATION

GT700 Toolbox talks/supporting guidance documents

Toolbox talks on some of these topics are available in the GT700 publication. Supporting guidance documents covering some of these topics are available on our companion website.



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Overview

The purpose of health and safety legislation is to protect the wellbeing of those at work and others, such as the general public, by ensuring work is carried out in a manner that is safe and free of risks to health for everyone who may be affected.

There are a number of different legislative requirements that must be followed to ensure this is achieved. This chapter outlines the main Act and regulations that apply.

1.1 Introduction

There has always been a risk of accidents or ill health associated with work activities. Society no longer accepts this as being part of the job. In recent years, the number of accidents and incidences of work-related ill health has dramatically reduced but accidents still happen and people's health continues to be damaged. The construction industry has a disproportionately high rate of both occurrences compared to other industries.

Everyone who goes to work has a right to return home uninjured and in a good state of health. Similarly, visitors to sites and members of the public have the same right to the protection of their health and safety.

Health and safety legislation sets out to protect people's right not to suffer injury or have their health damaged. It is a criminal offence to breach health and safety legislation. Punishments are related to the potential severity of the breach – a person does not need to be killed or injured for severe penalties to be imposed.

Minor breaches may result in the enforcing authority initiating corrective actions on the wrongdoer, either by offering advice or issuing an improvement or prohibition notice. For more serious offences, the punishment available to the courts includes unlimited fines and/or imprisonment.

Whilst health and safety legislation is embedded in criminal law, in some circumstances legislation gives a person who has been injured or made ill through work the right to take legal action against the employer for compensation, through the civil courts.



You can insure against civil liabilities but you cannot insure against criminal liabilities.

1.2 Important points

- The primary focus of health and safety legislation is to put legal duties on employers (and the self-employed, who in many cases have the same legal duties as employers) to ensure that work is carried out safely and without risks to health.
- It should be noted that some legislation places legal duties upon employees (for example, to take reasonable care of their own health and safety and the safety of others who may be affected by their acts or omissions).
- In specific situations legal duties are also placed upon *duty holders* (for example, clients, designers and contractors), as defined in the relevant legislation.
- In many situations site-based staff (such as supervisors, site managers or project managers) will be nominated by the employer to ensure that the employer's legal duties are complied with at site level.
- The overall legal duties lie with the employer, who must be confident in the ability and competence of their supervisors, managers and others who manage health and safety on their behalf.

The actions that must be taken to fulfil these duties are explained in the appropriate chapters of this book.

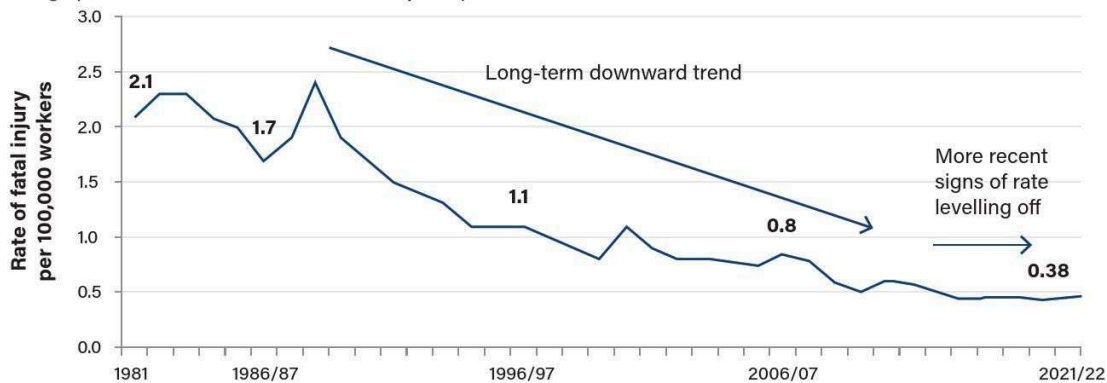
1.3 History of health and safety law

Since the introduction of the Health and Safety at Work etc. Act 1974 (HSWA), Britain has achieved one of the best health and safety records in the world. In 1974, there were 651 fatalities to employees.

Figures for 2021–22 show that across all industries there were 123 workers killed in work-related accidents, and 80 members of the public killed due to work-related accidents (excluding deaths to patients and service users in the healthcare and adult social care sectors in England). There were 30 fatal injuries to workers in the construction sector, and five fatalities to members of the public involving construction work.

(Sources: Construction statistics in Great Britain, 2022 and Work-related fatal injuries in Great Britain, published by the Health and Safety Executive (HSE) in November 2022.)

The graph below shows the number of fatal injuries per 100,000 workers.



(Source: HSE.)

These figures are still too high and the industry remains a high risk for injuries, but the significant improvements are evident. Over the long-term, the rate of fatal injury to workers showed a downward trend, though in the recent years prior to the Covid-19 pandemic, the rate had been broadly flat. The current rate is broadly in line with pre-Covid levels.

Before the introduction of the 1974 Act there were a number of different regulations or, in some areas, there were no regulations at all. HSWA became an enabling Act and since its introduction it has allowed for a number of regulations to be implemented and subsequently revised and/or revoked where necessary. Nearly 50 years on, HSWA has demonstrated it can be applied to new responsibilities and demands, creating the framework for people to come home safe and well from a day's work in any sector of the economy (*for further information on HSWA refer to 1.6*).

For over 200 years, the UK has had a continually evolving legal framework in place for the protection of workers' safety and health. A brief overview of key legislation is listed below.

- The first Act of Parliament directly concerned with safety was the Factories Act, passed in 1802, which dealt with the morals of apprentices.
- From 1812 onwards, a succession of Acts regulated working conditions in factories, with particular reference to women and children.
- In 1833, the first four factory inspectors were appointed. Children aged nine were being sent up chimneys as sweeps, where they could work a 48-hour week. They were supposed to spend two hours a day at school. People as young as 13 sometimes worked a 69-hour week.
- The first two female factory inspectors were appointed in 1893 and the first medical inspector in 1898.
- In 1901, a comprehensive Factories and Workshops Act was passed. It lasted until the Factories Act of 1937 replaced it. This, in turn, was repealed by the Factories Act of 1961.
- HSWA, the basis for modern legislation, came into force in 1974, bringing with it protection for virtually everyone at work and consolidating much of the earlier industry-specific legislation under a single Act.
- In 1994, the Construction (Design and Management) Regulations (CDM) were drafted to address the continuing unacceptably high rate of accidents and ill health befalling construction workers.
- In 2005, the Work at Height Regulations were introduced to address the continuing, unacceptably high rate of death and injury caused by falls from height. The regulations require employers and those in control of any work at height to ensure that work is properly planned, supervised and carried out by competent workers.
- CDM were revised in 2007 and 2015. As the cornerstone legislation for the construction industry, they reinforced the requirements for competence, co-operation and co-ordination, with a focus on 'the right information, to the right people, at the right time'.
- The coming into force of the Corporate Manslaughter and Corporate Homicide Act 2007 and the Health and Safety (Offences) Act 2008 demonstrated a hardening of Government's attitude towards serious breaches of health and safety legislation.
- The Löfstedt report *Reclaiming health and safety for all: an independent review of health and safety legislation* was published in 2011 as part of the Government's plan to overhaul the health and safety system in Britain. The report considers how legislation can be combined and simplified, aiming to reduce the burden on British businesses, which has resulted in a review of current legislation, including CDM.
- In 2012, the Control of Asbestos Regulations came into force. This updated the earlier asbestos regulations and made changes around some types of non-licensed work with asbestos, including medical surveillance, record keeping and notification of work.
- The Health and Safety (Fees) Regulations (introduced in 2012 and now amended to the Health and Safety and Nuclear (Fees) (Amendment) Regulations 2023) administer the HSE cost recovery scheme. The HSE recoups costs against those who contravene health and safety laws.

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- In 2015, the CDM Regulations were amended to implement the requirements of Directive 92/57/EEC, which lays down minimum safety and health requirements for temporary or mobile construction sites. This covers any construction site at which building or civil engineering works are carried out and intends to prevent risks by establishing a chain of responsibility linking all the parties involved. The main changes were to make the regulations easier to understand, replace the CDM co-ordinator role with a principal designer, replace the detailed and prescriptive requirements for individual and corporate competence with a more generic requirement, and align notification requirements with the Directive and apply the regulations to domestic clients in a proportionate way.
- In March 2015, the Legal Aid, Sentencing and Punishment of Offenders Act was amended. Magistrates' Courts were previously limited to fines of a maximum of £20,000 under Sections 2 to 6 of HSWA but this has now been amended to allow them to issue unlimited fines.
- In November 2018, new sentencing guidelines for health and safety, corporate manslaughter and food safety and hygiene offences came into force. These provide judges with a starting point for fines for companies that commit health and safety offences.
- In April 2022, the Personal Protective Equipment at Work (Amendment) Regulations came into force. They amend the 1992 regulations, and extend employers' and employees' duties regarding personal protective equipment to limb (b) workers.
- In June 2022, the Building Safety Act was introduced after the Grenfell Tower fire in 2017, and contains provisions intended to secure the safety of people in or about buildings, and to improve building standards. The new, stricter regulatory regime will govern the design, construction and maintenance of the built environment. The Act sets out rules to protect the design and construction of higher-risk buildings by regulating higher-risk buildings, raising safety standards for all buildings, and helping professionals in design, construction and building control to improve their competence. Building control professionals who ensure the safety and quality of the built environment will be regulated by the Building Safety Regulator (BSR) to raise standards and increase public trust.

1.3.1 Changes to building control

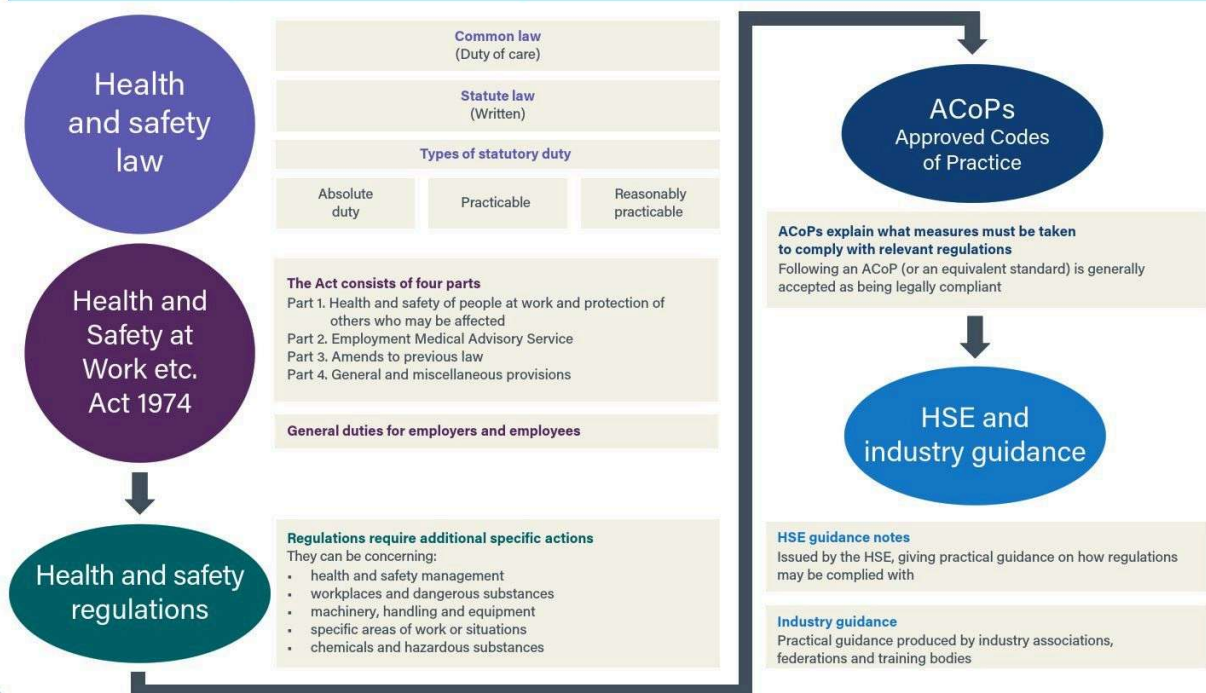
From 1 October 2023, the BSR will automatically assume the role of building control authority for all higher-risk buildings, and developers will no longer have the option to choose who they use as their building control body. This means that Local Authorities and approved inspectors will no longer be able to supervise higher-risk building works. The BSR will continue to work closely with Local Authorities and fire and rescue services to ensure that the correct specialists and regulators are involved when making decisions. Local Authorities will remain the building control body for other, non-higher-risk buildings.

1.3.1.1 Changes to the building control approval process

A new process for gaining building control approval for work on higher-risk buildings also came into force in October 2023. The aim is that the process will allow the BSR to regularly assess whether duty holders are continuing to properly take account of building safety measures, and that they are appropriately meeting all regulations throughout the design and construction processes. Changes to this Act and linked legislation continue to evolve. Ensure that work is being carried out to the most up-to-date regulatory requirements.

www.hse.gov.uk For further, up-to-date information on the BSR, visit the HSE website.

1.4 Summary of health and safety law



1.5 Contract, common and statute law

All employers, principal contractors, contractors and the self-employed, as well as employees, can have responsibilities in three distinct areas of law.

1.5.1 Contract law

- Requires agreement by two parties.
- Both parties must intend to form a legally binding agreement and must have the authority to enter into the contract.
- Under the Contracts (Right of Third Parties) Act the contract can include or exclude the rights of a third person.

1.5.2 Common law

- Evolved over centuries with judicial judgements creating legally binding precedents.
- Decisions made in higher courts are binding on all lower courts.
- Where parties disagree on the law, a common law court looks to past precedential decisions of relevant courts. If a similar dispute has been resolved in the past, the court is bound to follow the reasoning used in the prior decision.
- If the current dispute is fundamentally distinct from all previous cases judges have the authority and duty to make law by creating a new precedent.
- An individual has the right to protection from harm and the right to sue for compensation when they suffer loss, ill health or injury through the negligence of another.

1.5.3 Statute law

- Acts of Parliament, regulations and EU Directives.
- Laws made by the government.
- HSWA is an enabling Act, which permits the Secretary of State or other ministers to replace legislation with regulations requiring a higher standard of health and safety.
- Regulations are referred to as statutory instruments that are made under the enabling Act.
- If there is a conflict between common law and statute law, statute law takes precedence.

1.6 Health and Safety at Work etc. Act 1974

HSWA is the primary piece of health and safety legislation in the United Kingdom. The Act is termed as an enabling Act, which allows the Government to make health and safety regulations that become part of the law. The requirements of the Act are general and wide-ranging, such as:



It shall be the duty of every employer to ensure, so far as is reasonably practicable, the health, safety and welfare at work of all their employees.

This typical requirement does not specify any technical requirements or set any minimum standards of behaviour that can be measured, but it does clearly outline the requirement for safe places of work.

Health and safety regulations expand upon the legal requirements of the Act with regard to specific occupational work and include specific and technical requirements. Health and safety regulations are often supported by guidance notes or Approved Codes of Practice (ACoPs), which explain in plain language how compliance with the law can be achieved.



For further information on HSWA, refer to Chapter A02 The Health and Safety at Work etc. Act 1974.

The legal duties of employers and employees, as specified in HSWA, are shown below.

1.6.1 Employers' responsibilities

Under HSWA, an employer must, so far as is reasonably practicable:

- protect the health, safety and welfare at work of all their employees
- provide and maintain plant and systems of work that are safe and without risk to health
- have arrangements for ensuring safety and absence of risk to health in connection with the use, handling, storage and transport of articles and substances
- provide such information, instruction, training and supervision as is necessary to ensure the health and safety at work of employees

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- maintain any place of work under their control in a condition that is safe and without risks to health, and with access to and egress from it that are safe and without such risks
- provide and maintain a working environment that is safe, without risks to health and adequate as regards facilities and arrangements for the welfare of employees.

1.6.2 Employees' duties

Employees also have the following duties under health and safety law.

- Take reasonable care for the health and safety of themselves or others who may be affected by their acts or omissions.
- Co-operate with their employer in all matters relating to health and safety.
- Not intentionally or recklessly interfere with or misuse anything provided in the interests of health, safety and welfare.
- Use anything provided by the employer in accordance with instructions.
- Report anything that is thought to be dangerous.

The requirement, on the employer, to do what is reasonably practicable to ensure the health, safety and welfare of employees at work is balanced by a requirement, on the employees, to comply with any necessary rules or instructions and to take reasonable care of themselves and others.

1.7 Health and safety regulations

Many sets of regulations have been developed and introduced as a means of incorporating European Union legislation into the UK domestic legal framework. There are many sets of health and safety regulations in existence that are relevant to the work carried out by the construction industry. Some sets of regulations apply to construction work only.



The UK's departure from the European Union has no impact on the Health and Safety at Work etc. Act 1974. Equally, UK regulations that were implemented to align with EU Directives, both generally and in relation to the construction industry exclusively, still apply, as they have been transposed almost entirely into UK law. Nevertheless, changes to legislation do occur from time to time, and CITB strongly urges you to remain alert to possible future changes.

Health and safety regulations are a part of UK law that place duties on employers and employees. It is a criminal offence to contravene them. Legislation that affects the building and construction industry includes the following examples.

1.7.1 Construction (Design and Management) Regulations 2015

The main aim of the Construction (Design and Management) Regulations is to ensure that health and safety risks are considered and addressed, from concept through to completion of the project. The guidance identifies the main elements to securing construction health and safety, as shown below.

- **Appointing** the right people and organisations at the right time.
- Applying the **general principles of prevention**.
- Ensuring that everyone has the **information, instruction, training and supervision** necessary to enable them to carry out their jobs in a way that secures health and safety.
- Duty holders **co-operating and communicating** with each other and **co-ordinating** their work.
- **Consulting workers and engaging** with them to promote and develop effective measures to secure health, safety and welfare.

1.7.2 Control of Asbestos Regulations 2012

These regulations state the minimum standards for protecting workers and the general population from risks associated with exposure to asbestos, and require the identification of asbestos and asbestos-containing materials (ACMs) before any work is carried out.

1.7.3 Electricity at Work Regulations 1989

The necessary level of competency must be established, and all necessary information, instruction, training and supervision must be given. Formal written safe systems of work should be employed including, where necessary, the use of a 'permit to work' procedure.

1.7.4 Health and Safety (Display Screen Equipment) Regulations 1992

These regulations aim to protect the health of people who work with display screen equipment (DSE), including PCs, laptops and notepads. These regulations were introduced because DSE has become one of the most common forms of work equipment.

Incorrect use of DSE can result in upper limb disorders and other conditions, such as repetitive strain injury (RSI).

The following legal duties are placed on employers but do not apply to workers who use DSE equipment infrequently or for short periods.

- Analyse the workstation to assess or reduce risk.
- Provide eyesight tests, on request.
- Make sure controls are in place.
- Review the DSE assessment when the user or DSE changes.
- Provide information and training.

1.7.5 Management of Health and Safety at Work Regulations 1999

These regulations make employers' duties more explicit and explain what they need to do to manage health and safety. The main requirement is for employers to carry out a suitable and sufficient risk assessment. (The duty to risk assess includes the duty to identify specific risks to young people and new and expectant mothers.) Employers with five or more employees must record significant findings of the risk assessment.

1.7.6 Provision and Use of Work Equipment Regulations 1998

This details the specific duties on organisations that own, operate or have control over work equipment. These regulations require that all information, instruction, training and supervision must include:

- conditions and methods in which the equipment will be used
- safe working methods
- any foreseeable abnormal conditions and appropriate action
- possible risks and precautions to be taken.
- any conclusions drawn from experience when using equipment

It is important that equipment is used for the purposes for which it was designed, ensuring that consideration is given to the working conditions and the health and safety of the person(s) where the equipment is to be used and that all equipment is maintained and inspected as appropriate.

Employers must always consider:

- the nature and condition of the equipment
- the purpose for which it is to be used
- the place where it is to be used
- its suitability for the workplace and the task to be completed.

1.7.7 Reporting of Injuries, Diseases and Dangerous Occurrences Regulations 2013

A legal duty is placed on employers, the self-employed and those in control of premises to report:

- work-related deaths or specified injuries
- reportable diseases
- injuries resulting in an employee being unable to perform their normal work duties for more than seven days
- dangerous occurrences.

1.7.8 Work at Height Regulations 2005

Duty holders are required to ensure the following:

- All work at height is properly planned and organised.
- All equipment used for work at height is appropriately inspected.
- All work at height takes account of weather conditions that could endanger health and safety.
- The risks from fragile surfaces are properly controlled, as are the risks from falling objects.
- Those involved in work at height are trained and competent.
- The place where work at height is carried out is safe.

1.7.9 Working Time Regulations 1998

These regulations implement the European Working Time Directive and govern the hours most workers can work. The following are specified in the regulations.

- Set limits on the average working week – up to 48 hours per week over a 17-week period.
- Statutory entitlement to paid leave for most workers.
- Limit the normal hours of night work to an average of eight hours in any 24-hour period, and an entitlement for night workers to receive regular health assessments.
- Limit the working time of young people to not exceed eight hours per day, or 40 hours per week.
- Allow a daily rest period of 11 hours between each working day, and a weekly rest period of not less than 24 hours in each seven day period, but this may be averaged over two weeks.
- Entitle an adult worker to a rest break of not less than 20 minutes, within a daily working time of more than six hours.
- Entitle a young person to a rest break of at least 30 minutes, when they are working more than four and a half hours.

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1.7.10 Lifting Operations and Lifting Equipment Regulations 1998

These regulations place duties on people and companies who own, operate or have control over lifting equipment, and are required to ensure that:

- All lifting operations involving lifting equipment are properly planned by a competent person, appropriately supervised and carried out in a safe manner.
- All equipment used for lifting is fit for purpose, appropriate for the task, suitably marked and in many cases subject to statutory periodic 'thorough examination'.
- Records are retained of all thorough examinations, and that any defects are reported to both the person responsible for the equipment and the relevant enforcing authority.

1.7.11 Control of Substances Hazardous to Health Regulations 2002

Employers must control substances that are hazardous to health by identifying what the health hazards are; deciding how to prevent harm to health; providing control measures to reduce harm to health and ensure that they are followed; keeping all control measures in good working order; providing information, instruction and training for employees and others; providing monitoring and health surveillance in appropriate cases; and planning for emergencies.

1.8 Approved Codes of Practice

HSWA makes provision for the production of Approved Codes of Practice (often referred to as ACoPs), where appropriate, in support of some health and safety regulations. ACoPs are prepared and issued by the HSE.

Although they are not strictly a part of the law, ACoPs have special legal status in that failure to comply with the guidance contained in an ACoP may be cited in court as a failure to comply with the law and may form part of the evidence in a health and safety prosecution. ACoPs give practical advice on how to comply with the law in respect of those specific matters on which the Code gives advice.

Where an employer is accused of failing to comply with the requirements of an ACoP it is a valid defence for the employer if it can be shown that alternative measures, which were equally or more effective, were implemented. ACoPs are issued after wide public consultation with stakeholders, the involvement of other Government bodies and with the consent of the Secretary of State.

1.9 Guidance notes

These are issued by the HSE, and give practical advice on how regulations may be complied with. While they are not legally enforceable, they do provide practical guidance on how employers and employees may comply with health and safety legislation.

1.10 Standards of compliance

Within health and safety legislation specific words or phrases are used to qualify or describe the standard of compliance that must be achieved with regard to some legal (statutory) duties, such as the words 'absolute', 'practicable' (or 'best practicable means') or 'reasonably practicable'. The meanings of these types of statutory duty are explained below.

1.10.1 It shall be the duty of an employer to...

This means that the employer **must** comply with the legal duty being described, regardless of time, effort and cost. The word 'shall' (if not qualified by the phrase 'so far as reasonably practicable' or the word 'practicable') leaves no scope for not complying with the duty.

Duties referred to using the terms 'shall', 'must', 'will' (or 'shall not', 'must not', 'will not') are referred to as **absolute** duties, in that there is no choice but to comply. Non-compliance is a breach of the duty and, as such, is an offence.

1.10.2 It shall be the duty of an employer to... so far as is practicable

'Practicable' means that there is no scope for taking cost and convenience into account; the duty must be complied with if it is possible to carry it out within the current state of knowledge and technology (if it is technically possible, then the duty must be complied with).

e.g. Practicable

It was necessary for a worker to use a disc cutter to cut paving slabs to the required size.

The legal duty requires that the rotating blade of the machine be guarded to the extent that it is practicable to do so. This acknowledges that total guarding of the blade is not possible because the machine could not then be used for the job for which it was designed.

The law requires that the guard be adjusted to expose enough blade to enable the job to be carried out safely whilst providing the maximum degree of protection for the operator. Not to use a guard at all is not an option, even if it causes cost or inconvenience.

1.10.3 It shall be the duty of an employer to... so far as is reasonably practicable

Where a requirement to carry out a specific legal duty is qualified by the phrase 'so far as is reasonably practicable', employers are allowed to exercise their judgement on the extent of the measures that need to be taken to ensure the health and safety of the person(s) carrying out the job and anyone else who may be affected by it.

Deciding what are reasonably practicable measures to take should be based upon the findings of a risk assessment.



Reasonably practicable means that the risks involved in carrying out the work may be balanced against the cost in terms of money, inconvenience and time.

Where the risks to health and safety in carrying out a job are found to be low in comparison to what would be disproportionately high costs to totally overcome the risks, the employer need only take the measures that are considered to be reasonably practicable.



e.g. Reasonably practicable

It was necessary to provide access to working platforms of a scaffold at four different levels for a 12-week period, the higher level being a narrow lift between two structures. A decision had to be made on the best means of access.

Legislation on working at height requires 'every employer to ensure that work at height is carried out in a manner which is, so far as reasonably practicable, safe'.

In planning the job, the risk assessment showed the following.

- It would be necessary for tools and materials for various trades to be carried up to and down from the main working platform but not from the higher level lift. The ground was firm and level and there was plenty of space at the bottom of the scaffold.
- If a ladder was used, it could be securely tied to the scaffold and suitable handholds could be provided at the stepping-off point. The tools and materials could be hoisted up using a small electric hoist fixed to the scaffold.
- Various trades could be working together on the working platforms and at the same time a means of access only was required to the higher level lift, not for a place of work on the higher level lift. There were no weather considerations that would make the use of a ladder unduly unsafe.

Given the circumstances, it was decided that a ladder was not a reasonably practicable measure to prevent a fall with regard to access to the main working platforms where tools and materials were required and, therefore, a stair tower was used.

The stair tower also offered quicker, safer and easier access. For access to the higher level lift, a ladder was considered to be suitable, complete with a ladder safety gate.

1.10.4 Burden of proof

Many of the duties on employers are qualified with the phrases 'so far as is practicable' or 'so far as is reasonably practicable'.

Generally, in a court of law a defendant is innocent until proven guilty. However, with regard to these phrases, the burden of proof is reversed and so the defendant must prove that it was not reasonably practicable, or practicable, as the case may be, to do more than was done to mitigate the risks.

In effect, the defendant is guilty until they prove their innocence.

1.11 Consultation

HSWA made provisions for the appointment of a safety representative from a recognised trade union. As a result, the **Safety Representatives and Safety Committees Regulations** were introduced. These regulations apply on sites where an employee is a member of a recognised trade union.

Regulation 14 of CDM requires the principal contractor to consult and engage with workers. Their duties include making arrangements to ensure workers co-operate, consulting with workers or representatives in good time on matters relating to health and safety and ensuring workers or their representatives can inspect or take copies of any information that may affect health, safety and welfare on site.



For examples of how the principal contractor could consult with workers refer to the CDM industry guidance for workers.

The aim of all applicable regulations is to promote effective two-way dialogue between employers and employees, or their representatives.

On sites where there is no recognised trade union member representation, the **Health and Safety (Consultation with Employees) Regulations 1996** will apply. These regulations were introduced as HSWA only covers union-appointed safety representatives. These regulations give all employees, whether union members or not, the right to have consultation with their employers and to be provided with information. There are many similarities with the Safety Representatives and Safety Committee Regulations 1977.

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The following areas are covered by the regulations.

- Duty of the employer to consult.
- Persons to be consulted.
- Provision of information.
- Functions of the representative of employee safety.
- Training, time off and the provision of facilities.

1.11.1 Duty of the employer to consult

It is the duty of the employer to consult with their employees in good time on the following types of health and safety measures.

- The introduction of any measures that will affect the health and safety of employees.
- The arrangements for appointing or nominating the person(s) to assist the employer in complying with health and safety legislation.
- The provision of relevant information as required under health and safety legislation.
- Any planning or organisation of training required by relevant health and safety legislation.
- The health and safety implications of the introduction of new technologies into the employer's workplace.

1.11.2 Persons to be consulted

Employers may consult directly with all their employees or through representatives of employee safety, elected by a group of employees to represent them in health and safety consultation with their employer.

The employer must provide employees with a list of names of representatives of employee safety and the group they are representing in the workplace. The employer must inform employees of any changes in the form of consultation, such as a move from dealing with representatives to directly consulting with each employee. The employee representatives must also inform the employer when they no longer represent a group or groups of employees.

1.11.3 Provision of information

The employer must provide any information that the employees may require in order for them to participate fully in the consultation procedure. This will either be directly with all employees or with the elected representatives of employee safety.

The following are issues that the employer must consult on.

- Introduction of measures at the workplace that may substantially affect the health and safety of employees.
- Arrangements for obtaining or appointing the competent person to assist the employer to interpret and comply with health and safety requirements.
- Information on risks to employees' health and safety and the measures taken to remove or minimise them.

1.11.4 Functions of the representatives of employee safety

The functions of the representatives of employee safety are similar to those of the trade union safety representative appointed under the Safety Representatives and Safety Committee Regulations. They may make representations on hazards, risks, dangerous occurrences, ill health and general health and safety matters.

1.11.5 Training, time off and provision of facilities

The employer must provide the employee representative with appropriate and reasonable training time and reasonable facilities to enable them to perform their functions. This includes the employer meeting reasonable costs associated with training and time off to perform the function. The employee is protected from unfair dismissal when participating in consultation with employers on matters.

1.12 Occupiers' Liability Act 1957

Legal duties are placed on the occupiers of premises to ensure the health and safety of anyone entering those premises, whether authorised to be there or not.

- The Occupiers' Liability Act covers civil law duties that an occupier of any land or premises has towards other people in general.
- It applies irrespective of whether the owner is the occupier or whether the premises are rented or occupied under any terms.
- Where premises, or part of the premises, are handed over to the contractor, it would be likely that the contractor would be regarded as the occupier.
- Premises include the grounds surrounding a building (for example, an unfenced excavation outside a construction site).
- A visitor can be anyone who is not an employee. Therefore a visitor may be any person who is a lawful visitor with genuine reason to visit the premises, or a trespasser.
- The occupier must expect children and young persons to be inquisitive to trespass. Therefore greater measures may be required where the risk is foreseeable.

- Control measures (such as immobilising plant and machinery, isolating sources of ignition, locking away substances hazardous to health, providing lighting and correct stacking of materials) should be implemented, where applicable.

One area of particular concern is house building or repairs and maintenance, when property may remain in occupation at the time of work being undertaken. Additional control measures may be required if work areas cannot be fully segregated from other persons in the premises.

1.13 Corporate Manslaughter and Corporate Homicide Act 2007

Since 6 April 2008, companies whose gross negligence leads to the death of individuals can face prosecution for manslaughter (homicide in Scotland) under the Corporate Manslaughter and Corporate Homicide Act. Under this legislation companies, organisations and, for the first time, Government bodies face an unlimited fine if they are found to have caused death due to their gross corporate health and safety failures.

The legislation primarily came about as a result of the failure to identify 'the controlling mind' in companies with complex management structures during court cases, which followed several high profile disasters.

However, presentations by authoritative legal professionals have indicated that the legislation might have much wider ranging implications (such as prosecutions following at-work-related road deaths and fatalities). The Act offers employees of companies, consumers and other individuals greater protection against corporate negligence. It will also help to focus the minds of those in companies and other organisations by ensuring that they take their health and safety obligations seriously.

1.13.1 The Act

The Act applies to the whole of the United Kingdom, with the term *corporate homicide* applying to Scotland only. The Corporate Manslaughter and Corporate Homicide Act:

- makes it easier to prosecute companies and other large organisations, when gross failures in the management of health and safety lead to death, by delivering a new, more effective basis for corporate liability
- has reformed the law so that an important obstacle to successful prosecutions has now been removed. It means that both small and large companies can be held liable for manslaughter where gross failures in the management of health and safety cause death, not just health and safety violations
- complements the current law under which individuals can be prosecuted for gross negligence manslaughter and health and safety offences, where there is direct evidence of their culpability. The Act builds on existing health and safety legislation – so the new offence does not impose new regulations on business
- lifts Crown immunity to prosecution. Crown bodies – such as Government departments – will be liable to prosecution for the first time. So the Act will apply to companies and other corporate bodies, in the public and private sector, Government departments, police forces and certain unincorporated bodies, such as partnerships, where these are employers.

The above text is an extract reproduced from a Ministry of Justice press release under licence from His Majesty's Stationery Office.

An organisation will be guilty of the offence if someone has been killed as a result of the gross failure of senior managers (for example, failure to ensure safe working practices for their employees, such as ensuring that staff are properly trained and equipment is in a safe condition, or to maintain the safety of their premises, such as ensuring that lifts are properly maintained and fire precautions taken).

The Act covers organisations providing goods and services to members of the public, the construction, use or maintenance of infrastructure or vehicles, or when operating commercially. Crown bodies and other public sector organisations, including police forces, will be on an equal footing with the private sector when carrying out similar work.

The offence is clearly linked to the standards required under other health and safety laws. It does not apply to circumstances where an organisation does not owe a duty of care, or to certain public and government functions whose management involves wider questions of public policy and is already subject to other forms of accountability. For example, it does not apply to strategic decisions about the spending of public money or activities like statutory inspection, holding prisoners in detention, emergency service response, policing or child protection.

If a company is found guilty of corporate manslaughter the penalty is an unlimited fine. The Act also gives the courts power to impose a remedial order, which can already be imposed for health and safety offences, and requires the company to address the cause of the fatality.

1.14 Sentencing guidelines

In November 2018, new sentencing guidelines for health and safety, corporate manslaughter and food safety and hygiene offences came into force. Sentencing guidelines help judges and magistrates to decide on the appropriate sentence for a criminal offence. They direct the courts to consider the sentencing of offending organisations by way of a step-by-step approach, primarily examining culpability, the likelihood of harm and the seriousness of the harm.

These categories are then divided into different levels to reflect the scale within each category. The guidelines require an assessment of turnover in order to set a starting point for a fine. The majority of the other sentencing steps relate to the consideration of increasing or decreasing the level of fine according to a range of factors. There are similar guidelines for sentencing individuals for health and safety offences, with a stronger focus on the risk of a custodial sentence for those found guilty of serious breaches.

[www](https://www.sentencingcouncil.org.uk/) For more information on the sentencing guidelines visit the Sentencing Council website.

HEALTH AND SAFETY LAW

01

1.15 Health and Safety (Offences) Act 2008

This legislation, which came into force in January 2009, amends Section 33 of HSWA, and in doing so it:

- increased the maximum fine that can be awarded by the courts for breaches of health and safety regulations, from £5,000 to £20,000 (now superseded by the Legal Aid, Sentencing and Punishment of Offenders Act 2012 (*refer to 1.16*))
- increased the number of health and safety offences for which a guilty person can be imprisoned
- enables certain offences, which could previously only be tried in Magistrates' Courts, to be tried in either Magistrates' Courts or Crown Courts.

1.16 Legal Aid, Sentencing and Punishment of Offenders Act 2012

This amends the table at Schedule 3A to HSWA, by removing the limits that could be awarded in a lower court in England and Wales. However, the limits remain the same in Scotland.

The maximum penalty for an offence depends on the date of the commission of the offence and the type of court (lower (Magistrates') court or upper (Crown) court) dealing with the case. For offences committed before 16 January 2009, the maximum was £20,000 in the lower court, and an unlimited fine in the higher court.

Between 16 January 2009 and 12 March 2015, the maximum penalty was £20,000 and/or imprisonment for up to six months in the lower court, and an unlimited fine and/or imprisonment up to two years in the higher court. The maximum penalties for offences committed on or after 12 March 2015 are shown in the table below. Those found guilty of a health and safety offence can now be sentenced by a Magistrates' Court in all cases.

The table summarises amendments to Schedule 3A to HSWA, and sets out offences and maximum penalties under health and safety legislation.

Offence	Court	Maximum penalty
A breach of Sections 2-6 , which set out the general duties of employers, self-employed persons, persons who have control of premises, employees, manufacturers and suppliers to safeguard the health and safety of employees and members of the public who may be affected by work activities.	Lower court maximum	Unlimited fine (£20,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment
A breach of Section 7 , which is the failure of an individual to take reasonable care of their own health and safety or that of someone else who is affected by their acts or omissions, or failure to co-operate with the employer in matters of health and safety.	Lower court maximum	Unlimited fine (£5,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment
A breach of Section 8 , which imposes a duty on all persons not to intentionally or recklessly interfere with anything provided in the interests of health, safety or welfare.	Lower court maximum	Unlimited fine (£20,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment
A breach of Section 9 , which imposes a duty on employers not to make a charge for anything provided in the interests of health or safety.	Lower court maximum	Unlimited fine (£20,000 in Scotland)
	Higher court maximum	Unlimited fine
A breach of Section 33(1)(c) , which is to contravene any health and safety regulation.	Lower court maximum	Unlimited fine (£20,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment
A breach of Sections 33(1) (e), (f) or (g) , which are concerned with: - contravening any requirement of an inspector when exercising their enforcement powers - preventing anyone appearing before an inspector, or - contravening any requirement imposed by an improvement or prohibition notice.	Lower court maximum	Unlimited fine (£20,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment
A breach of Section 33(1)(h) , which is to intentionally obstruct an inspector in exercising their powers or duties.	Lower court maximum	Unlimited fine and/or 12 months' imprisonment** (one year in Scotland)
	Higher court maximum	Not applicable
A breach of Sections 33(1)(k), (l) or (m) , which are concerned with making false statements, false entries in a register or book or forging or using a document to deceive an inspector.	Lower court maximum	Unlimited fine (£20,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment

Offence	Court	Maximum penalty
A breach of Section 33(1)(o) , which is to fail to comply with a court remedy order under Section 42.	Lower court maximum	Unlimited fine (£20,000 in Scotland) and/or 12 months' imprisonment*
	Higher court maximum	Unlimited fine and/or two years' imprisonment
A breach of Sections 36 or 37 of HSWA , which relate to offences committed by corporate bodies due to the personal failings of directors, senior managers, company secretaries, and so on. See also Note 4 below.	Lower court maximum	Five years' disqualification
	Higher court maximum	15 years' disqualification

Notes

1. A lower court is a Magistrates' Court (or Sheriff Court in Scotland).
2. A higher court is a Crown Court (or High Court of Judiciary in Scotland).
3. *The maximum term of imprisonment that may be imposed by a Magistrates' Court is currently six months. When s154(1) of the Criminal Justice Act 2003 is brought into force the maximum term will be increased to 12 months.
 **The maximum term of imprisonment that may be imposed by a Magistrates' Court is currently six months. When s281(5) of the Criminal Justice Act 2003 is brought into force the maximum term will be increased to 51 weeks in England and Wales or 12 months in Scotland.
4. On conviction of directors for indictable offences in connection with the management of a company, the courts may also make a disqualification order (Company Directors Disqualification Act 1986, Sections 1 and 2). The courts have exercised this power following health and safety convictions and health and safety inspectors draw this power to the court's attention whenever appropriate.

Appendix A – Prosecution under the Corporate Manslaughter and Corporate Homicide Act 2007



Company fined £2.4 million following two corporate manslaughter charges

A construction company director has been jailed after two workers fell from a first-floor balcony at a luxury flat in Knightsbridge, West London. The 44-year-old director of the renovation firm was found guilty of breaching Section 2(1) of the Health and Safety at Work etc. Act (HSWA) and received a 14-month prison sentence for each death, to run concurrently. He was also barred from being a company director for four years.

The company, which has gone into liquidation since the incident, despite previously having an annual turnover of around £9.7 million, was found guilty of two counts of corporate manslaughter and two breaches of Section 2(1) of the HSWA. The company was fined £1.2 million for each death and £650,000 for HSWA breaches, all of which apply concurrently. It also had to pay £72,000 costs.

The court heard that two Polish nationals, aged 22 and 29 years, fell from the balcony of a flat in London's Cadogan Square, which was being refurbished by the director's renovation company. The men were part of a group of five workers who were using ropes to haul a 115 kg sofa up 6 m, over a balustrade and onto a balcony, with only the Victorian iron railings of the balcony acting as a barrier. The 130-year-old railings gave way and the two men fell from the balcony to the ground. The 22-year-old was pronounced dead at the scene, while the 29-year-old was taken to a central London hospital in a critical condition, where he later died of his injuries.

The sofa delivery company had recommended that an external furniture lift should be hired for the lift and had emailed the director of the renovation company with an estimated budget of £848 to hire an external lift. The director responded with a message saying: 'Unfortunately, we do not have time for all that. Please deliver the sofa and we will get it up to the flat'.

By the autumn, work on the flat was over budget and behind schedule. The renovation budget had increased from around £650,000 to as much as £920,000. The court heard that on the day of the accident there was a failure to identify who was supervising the site.

The prosecution told the court that none of the training documents provided were in Polish, despite the workers not speaking English, suggesting that the documents were 'just for show'. The men were also not provided with a plan, method statement or risk assessment before the task started.

The judge stated that the director's motive for ignoring the warnings about the furniture lift 'must have been in one way or another to benefit his business. The word has got to get out that health and safety on building sites is not a boring technicality. It is vital to the safety of employees and others in what is inherently a dangerous environment. Those who are wilfully blind to the risks, despite warnings – as you were – have got to expect to go immediately to prison'.

(Source: HSE.)

Appendix B – Prosecution under common and criminal law



Safety fall-arrest netting would have saved the life of workman; contracts manager handed two year prison term

Manchester Crown Court has heard how a 54-year-old construction worker died from severe head injuries when he fell through the fragile roof on which he was working. The circumstances surrounding the death were investigated jointly by Greater Manchester Police and the Health and Safety Executive (HSE). The investigators found: 'there had been fundamental breaches of duty on the part of those who organised the work to the roof'.

Practicable steps that could and should have been taken to ensure the safety of those working on the site had not been taken, thereby exposing the workforce to risks that they should never have been exposed to, and which led directly to the death. The practical steps required included providing netting to arrest any fall. Experts assessed the site after the fall and advised that such netting was necessary. A further expert stated that it was not difficult to provide safety netting and, if it had been installed, it would have caught the man. Experts told investigators that netting would have cost approximately £1,250 to safely install.

During the investigation the police examined the computer of a contracts manager for one of the companies involved in the project, and found that he had altered the records 'in order to mislead the investigation'. He presented a risk assessment document containing the forged signature of the deceased worker, in order to mislead and attempt to justify his actions.

The 50-year-old contracts manager from Warrington was sentenced to two years in prison after pleading guilty to failing to take reasonable care of other persons, pursuant to Section 7 of the Health and Safety at Work etc. Act 1974, contrary to Section 33(1)(a) (a failure to discharge a duty to which a person is subject by virtue of Sections 2 to 6). He also pleaded guilty to the common law charge of perverting the course of justice.

The employer of the deceased person and the contracts manager were fined £100,000 and ordered to pay £30,000 in prosecution costs after pleading guilty to Section 2(1) of the Health and Safety at Work etc. Act 1974. The other roofing contractor involved in the project and incident was fined £12,000 and ordered to pay £33,000 in prosecution costs after being found guilty of Regulation 15(2) of the Construction (Design and Management) Regulations 2015 following a trial.

A detective chief inspector from Greater Manchester Police's major incident team said: 'Today's result should serve as a stark reminder to those who employ people and have a responsibility to look after them in the workplace – cutting corners in this way is dangerous and can ultimately rip families apart, because it was these actions that had absolutely cataclysmic consequences and led to an unnecessary and preventable death. The fact that the manager went on to forge the deceased man's signature demonstrates that rather than thinking about the deceased man and his loved ones in the aftermath of his death, the sole thought of the contracts manager was to cover his tracks and prevent the investigation from establishing what had occurred.'

A HSE principal inspector said: 'This was an entirely foreseeable and preventable incident, which resulted in a tragic and needless loss of life. Falls from height remain the biggest cause of workplace fatalities in the UK construction industry. It is vital that those involved in planning, managing and carrying out work at height understand the risks and identify and implement suitable control measures to prevent injury. Had such steps been taken in this case, this incident would not have occurred.'

(Source: HSE.)

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The Health and Safety at Work etc. Act 1974

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Supporting INFORMATION

GT700 Toolbox talks/supporting guidance documents

Toolbox talks on some of these topics are available in the GT700 publication. Supporting guidance documents covering some of these topics are available on our companion website.



**Scan the QR code to complete a brief survey,
and share your feedback on the course.**

THE HEALTH AND SAFETY AT WORK ETC. ACT

02

Overview

The Health and Safety at Work etc. Act 1974 (HSWA), also referred to as 'the Act' within this chapter, is the primary legislation covering health and safety in England, Scotland and Wales.

The Act mainly places legal duties on employers, the self-employed, and other designated persons such as manufacturers, designers and, to a lesser extent, employees. The aim is to promote health and safety awareness and effective standards of health and safety management for all.

This chapter outlines what the Act is about and what is required.

2.1 Introduction

The Act sets out the general duties that employers and the self-employed have towards their employees and other persons, as well as the duties that employees have towards themselves, their employer and to other persons, including fellow employees.

These duties are qualified in the Act by the principle of 'so far as is reasonably practicable'. In other words, an employer does not have to take additional measures to avoid or reduce the risk if such measures are technically impossible or if the time, trouble or cost of the measures would be grossly disproportionate to the risk.



It shall be the duty of every employer to ensure, so far as is reasonably practicable, the health, safety and welfare at work of all their employees.



For an explanation of *absolute*, *practicable* and *reasonably practicable* refer to Chapter A01 Health and safety law.



Occupational health and safety

Occupational health refers to all health problems in the work environment. The term covers health problems workers bring to the workplace, as well as health issues caused or made worse by work.

It covers serious and fatal diseases, physical effects on skin, breathing, hearing, mobility and functioning, and psychological effects on mental wellbeing.

Effects may be immediate and visible, but are more often unseen and take a long time to develop, so vigilance and monitoring can be key to identifying problems.

Some effects can be cured if diagnosed early; many can only be prevented from getting worse, and some diseases are terminal.

Safety is the protection of people from physical injury. It refers to a workplace having an acceptable degree of freedom from risk.

(Sources: CONIAC and NEBOSH.)

2.2 Important points

- The Act is statute law and breaches of the Act are a criminal offence.
- The HSE and Local Authorities are responsible for enforcing the Act.
- What the law requires is what good management and common sense would lead prudent employers to do anyway: that is, to look at what the risks are and take sensible and proportionate measures to tackle them.
- The ultimate aim of the Act is to promote health and safety awareness and effective standards of health and safety management by every employer.

2.3 Aims and scope of the Act

The Act provides for a comprehensive, legislative framework to promote, stimulate and encourage high standards of health, safety and welfare in the workplace, and to improve the way work is planned, performed and executed.

One of the main aims of the Act is to **involve everyone** in matters of health and safety.

- Management.
- Employees.
- Self-employed.
- Employees' representatives.
- Controllers of premises.
- Manufacturers of plant, equipment and materials.

The Act also requires that adequate measures are taken to protect others (such as members of the public) where their health or safety would be at risk from a business undertaking or the way a business performs its activities.

All persons at work are covered by the Act, with the exception of domestic and service staff in private households. This is an enabling Act that allows the Secretary of State to make further laws without the need to pass another Act of Parliament. Regulations are laws, approved by Parliament. These are usually made under the Act following proposals from the HSE.

2.4 Relevant statutory provisions

The Act requires compliance with the relevant statutory provisions.

- The Act itself.
- Other health and safety legislation, as listed in Schedule 1 of the Act.
- All the legislation made under Section 15 of the Act. (This covers all health and safety regulations made since 1974.)

2.5 Main parts of the Act

The Act consists of four parts, shown below.

Part 1	Health, safety and welfare in the workplace.
Part 2	Employment Medical Advisory Service (EMAS) – functions and responsibilities.
Part 3	Building Regulations and relating amendments to the law.
Part 4	Miscellaneous and general provisions.

Employers and their representatives, managers, supervisors, safety supervisors, safety representatives and others with a responsibility for ensuring legal compliance will be mainly concerned with Part 1 of the Act.

2.5.1 Part 1. Health, safety and welfare in the workplace

The main provisions of Part 1 of the Act are shown below.

- Securing the health, safety and welfare of persons at work.
- Protecting persons, other than persons at work, against risks to health and safety, arising out of, or in connection with, the activities of persons at work.
- Duties of employees.
- Establishing the Health and Safety Commission (HSC) and the HSE, which are generally responsible for enforcing and administering the Act, or any of the regulations made under it. The HSC has since been abolished, and its role and duties have been passed over to the HSE.
- The power of the Secretary of State to make regulations, the provision of regulations and repeal and modification of existing statutory provisions.
- Approval by the HSE of Approved Codes of Practice in accordance with the Legislative Reform (Health and Safety Executive) Order 2008.
- Using Approved Codes of Practice in criminal proceedings, in accordance with Section 17 of the Act.
- The powers of the HSE to make adequate arrangements for the enforcement of relevant statutory provisions, both in relation to this and other health and safety legislation, whether by appointing its own inspectors or transferring its powers to other Local Authorities.
- The appointment of inspectors in writing, specifying their powers and means for the enforcement of the Act.
- Improvement notices.
- Prohibition notices.
- Appeals procedures against improvement or prohibition notices.
- The provision for criminal offences and punishments.

2.5.2 Part 2. Employment Medical Advisory Service

The main provision of Part 2 of the Act is the continuation of the Employment Medical Advisory Service (EMAS).

The responsibility for maintaining this service has been delegated by the Secretary of State to the HSE.

2.5.3 Part 3. Building Regulations 2010

The main provision of Part 3 of the Act is the extension of the scope and coverage of the Building Regulations.

THE HEALTH AND SAFETY AT WORK ETC. ACT

2.5.4 Part 4. Miscellaneous and general

The main provision of Part 4 of the Act concerns amendments, repeals and modifications to other Acts or instruments.

These amendments affect (among other matters) general fire precautions, including means of escape in most factories, offices and shops. These can now be dealt with by the fire authorities, under the provisions of the Regulatory Reform (Fire Safety) Order 2005.

The HSE remains responsible for control over 'process risks' (that is, risk of outbreak of fire associated with particular processes or particular substances).

In future, regulations may be made so that company reports will have to include information on health, safety, welfare and environmental performance.



The HSE recommends that companies give information about health and safety performance in their shareholders' or annual report.

2.6 Duty holders under the Act

The Act **mainly** places legal duties on employers, the self-employed and employees, but there are some exceptions.

- Section 4 places duties on the persons who control premises with regard to the health and safety of other persons who are not their employees.
- Section 6 places duties on the manufacturers, designers, importers and suppliers of equipment.
- Section 8 places a duty on all people to not intentionally or recklessly interfere with or misuse anything provided in the interests of health, safety or welfare.

2.6.1 Duties of employers

Part 1 of the Act places a general duty on every employer (Section 2) to ensure, so far as is **reasonably practicable**, the health, safety and welfare at work of all their employees.

The Act goes on to state that, so far as is reasonably practicable, the employer must meet the following requirements.

- Protect the health, safety and welfare at work of all their employees – Section 2(1).
- Provide and maintain plant and systems of work that are safe and without risk to health – Section 2(2)(a).
- Ensure safety and absence of risks in the use, handling, storage and transport of articles and substances – Section 2(2)(b).
- Provide adequate information, instruction, training and supervision, as is necessary, to ensure the health and safety of their employees – Section 2(2)(c).
- Provide and maintain a working environment that is safe, without risks to health and with safe access and egress – Section 2(2)(d).
- Provide and maintain a working environment that is safe, without risks to health and with adequate welfare and facilities arrangements – Section 2(2)(e).

Certain additional duties have been placed on the employer.

- Where five or more persons are employed, to prepare, publicise and revise, as often as may be appropriate, a written statement of the employer's health and safety policy and the organisation and arrangements in force for implementing the policy – Section 2(3).
- To ensure, as far as is reasonably practicable, that the conduct of their work does not endanger persons not in their employment who may be affected by operations under their control (for example, sub-contractors or the public) – Section 3(1).



In certain circumstances, employers must provide information to others about those aspects of their undertaking that might affect health and safety.

This duty is explicit in the Construction (Design and Management) Regulations 2015.

Trade unions recognised by the management at the workplace have the right to appoint safety representatives from within the workforce.

Section 2(4), (6) and (7) state that employers must achieve the following.

- Provide for the appointment, by recognised trade unions, of safety representatives from the employees, in order to consult with, as appropriate.
- Establish safety committees, when requested in writing by at least two safety representatives.



For further details of the employers' duty to consult with employees, refer to Chapter A01 Health and safety law.

2.6.2 Duties of employees

The Act places two general duties on employees (Section 7).

- To exercise reasonable care for the health and safety of themselves or others who may be affected by their acts or omissions at work – Section 7(a).
- To co-operate with the employer, as far as is necessary, to enable them (the employer) to comply with their legal duties in health and safety matters – Section 7(b).

Employees also have duties under various other regulations that expand on these general duties (for example, Regulation 14 of the Management of Health and Safety at Work Regulations).

2.6.3 Duties of the self-employed

A general duty is placed on the self-employed to conduct their undertaking in such a way as to ensure, so far as is **reasonably practicable**, that they and other persons are not exposed to risks to health and safety. In many ways, the self-employed person has similar duties to an employer, including giving information to persons other than their employees about those aspects of their undertaking that might affect their health and safety – Section 3(2) and (3).



Self-employed builders fined for illegal asbestos removal

Two self-employed builders were sentenced for exposing householders, as well as themselves, to asbestos. The builders were prosecuted after they illegally removed and broke up asbestos panels from a home.

Samples were taken to test for asbestos and the results revealed that asbestos was present. However, the HSE's investigation concluded that by the time the test results were known, the builders had already broken up the asbestos insulating boards (AIBs) with a hammer and removed them. Neither of the builders held the necessary licence to remove the asbestos boards. Nor did they carry out, or ask to see, an asbestos survey, which is required by law before any demolition or refurbishment work is undertaken.

In failing to take adequate steps to prevent both the exposure to and spread of asbestos fibres generated by their work, they put the householders, themselves and others at risk of inhaling the potentially harmful airborne fibres. The subsequent clean-up of the site cost more than £6,500.

Both builders pleaded guilty to a breach of the Health and Safety at Work etc. Act 1974. They were individually fined a total of £2,000 and ordered to pay costs of £1,200.

Speaking after the prosecution, an HSE inspector said: 'An estimated 70% of properties contain asbestos. It is illegal to undertake any work which will disturb the fabric of the building without carrying out and obtaining the results of an asbestos survey. The type of work being undertaken should have been carried out by a builder who holds the necessary licence, in a safe manner and with the necessary control measures. Instead (the builders) exposed the householders and others – including themselves – to potentially harmful airborne asbestos fibres. They also demonstrated a complete disregard for the law'.



Section 3(2) of the Health and Safety at Work etc. Act 1974 states: it shall be the duty of every self-employed person to conduct their undertaking in such a way as to ensure, so far as is reasonably practicable, that they and other persons (not being their employees) who may be affected thereby are not exposed to risks to their health or safety.



For further information on duties of the self-employed visit the HSE website.

2.6.4 Duties of those in control of premises

Duties are imposed on anyone who is in control of non-domestic premises to ensure the health and safety of anyone, who is not an employee, who enters those premises to carry out work. The duties also apply to premises where machinery, equipment or substances are provided for the use of others. The person in control of non-domestic premises is generally the owner, occupier or other person who has specific obligations for maintenance or repair of those premises by virtue of a contract or tenancy agreement – Section 4.

2.6.5 Duties of manufacturers, designers, importers and suppliers

A general duty is placed on any person who manufactures, designs, imports or supplies any article, material or substance for use at work to ensure, so far as is reasonably practicable, that articles and substances are, by design and construction, safe and without risks to health when being used, set, cleaned or maintained by persons at work – Section 6.



Information on design noise levels under normal working conditions should be supplied if noise levels may be a risk to health, or exceed the lower exposure action value specified in the Control of Noise at Work Regulations 2005. Similarly, manufacturers of tools that may be a source of hand-arm vibration must provide details of the levels of vibration generated.

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More specifically, a duty exists to ensure that arrangements are made to carry out the necessary testing, examination and research of any article, material or substance, and that steps are taken to provide adequate information about any conditions necessary to ensure that it will be safe when used.

A general duty is placed on installers or erectors of any article for use at work to ensure, so far as is reasonably practicable, that it is safe and without risk to health when used by persons at work – Section 6(3).

2.6.6 Duties of all people

This section of the Act places a duty on all persons to not intentionally or recklessly interfere with or misuse anything provided in the interests of health, safety and welfare – Section 8.

This can apply to all persons, regardless of employment status.

2.6.7 Duty not to charge employees

Employers must not charge, or permit any employee to be charged, for anything that must be provided to meet any of the relevant statutory provisions – Section 9.

2.7 Health and Safety Executive (HSE)

The HSE has certain powers and duties under the Act. The powers may also be exercised by Local Authority environmental health officers on certain smaller sites and in offices.

The enforcement of all health and safety law is carried out under the provisions of the Act. This means that methods of enforcement are the same throughout the country.

The HSE is responsible for maintaining a force of health and safety inspectors, and has a construction division with their own construction inspectors. It plays an active role in collaborating with industry and key stakeholders, and focuses on policy initiatives and new construction legislation.

HSE and Local Authority inspectors have a range of tools at their disposal in seeking to secure compliance with the law and ensure a proportionate response to offences.

For more serious offences, inspectors may serve improvement or prohibition notices and they may prosecute or, in Scotland, report to the Crown Office and Procurator Fiscal Service (COPFS) with a view to prosecution.



Prosecution and enforcement figures for 2020–21

- HSE prosecuted 185 cases, or referred cases to COPFS for prosecution in Scotland, where a conviction was achieved.
- Across all enforcing bodies there were 2,929 notices issued.
- A total of £26.9 million in fines resulted from prosecutions taken, or referred to COPFS for prosecution in Scotland, by HSE where a conviction was achieved, compared to £54.5 million in fines in 2018–19.



The restrictions imposed by the Covid-19 pandemic have had an impact on the number of prosecutions and notices issued. 2021 saw a substantial fall in the number of cases prosecuted. The number of notices issued by HSE bodies showed a substantial decrease compared to the previous year. Though the total value of all fines has decreased, the average fine per case has increased from £107,000 to £145,000.

(Source: HSE.)

Health and safety inspectors have wide-ranging powers, vested in them by the Act. They also have enforcement powers under the Regulatory Reform (Fire Safety) Order 2005 (FSO). Below and on the next page is a summary of the main powers that inspectors and officers from Local Authority possess. Officers of the local fire and rescue service also have enforcement powers when dealing with matters under the FSO, which falls under the Building Safety Act 2022.

- Prosecute a company or individual for a breach of health and safety law.
- Visit or carry out an inspection of a workplace, at a reasonable time, without giving prior notice.
- Issue a prohibition or improvement notice.
- Stop the further use of equipment that is considered to be a serious risk to health or safety.
- Investigate accidents or dangerous occurrences.

- Require that any designated part of a premises remains undisturbed for as long as is deemed necessary.
- Investigate a particular work activity or any plant or equipment following a complaint or accident.
- Take measurements or photographs as necessary.
- Inspect or take copies of any books or records.
- Demand the full co-operation of any persons to assist them in their duties.
- Demand information from employers or employees and require them to sign a statement of their answers.
- Remove or make safe any article or substance considered to be a source of danger or serious personal injury.
- Require additional fire precautions work to be carried out on a construction site.
- Provide information for employers and employees about hazards that may affect their health and safety at work.
- Act as a source of information on health, safety and welfare at work.



The HSE offers a range of services to assist employers and employees. Many publications are produced each year – with some at no charge or downloadable from its website.

2.7.1 Investigation

Inspectors are given a general right to examine and investigate as necessary – Section 20. They may:

- enter premises (accompanied by a police officer or other authorised person if necessary), taking with them any equipment or material required by them for the purposes of the examination
- direct that anything shall be left undisturbed if required for examination or investigation
- take measurements, samples, photographs and such recordings as may be necessary
- have dismantled or tested any article or substance considered dangerous, or take possession of any article for examination and evidence.

Inspectors may inspect or take copies of record books or documents. They may demand from an employee or other person any information they think necessary and can ask an employee or other person to sign a declaration of the truth of their answers.

In general, they can demand the full co-operation of any person to provide them with such facilities and assistance as they may deem necessary.

2.7.2 Advisory

Inspectors also act as a source of information and advice. It is their duty to tell employee representatives (safety representatives or trade union-appointed safety representatives) or the employees about anything that may affect their health and safety at work.

This information should be similar to that given to the employer.

2.7.3 Enforcement options

Inspectors can use any of the powers listed in the following table against any person taking part in, or in control of, any work activity or piece of equipment.

Any person means an employer, self-employed person, a supplier or an employee.

1. Informal	Inspectors may give advice on compliance in the case of minor breaches.
2. Formal letter	A formal letter may contain details of breaches and the action needed to comply with the legislation. It may also contain more detailed and formalised advice. Whilst visiting a site, an inspector can prepare an instant visit report with a date agreed for work to be completed.
3. Improvement notice	Where a breach is more serious, the inspector may issue an improvement notice, which will outline the work required and the date for completion. This will be at least 21 days from the date of receipt (<i>refer to Appendix A for an example of an improvement notice</i>).
4. Prohibition notice	If an activity involves, or is likely to involve, a serious risk of personal injury, the inspector may serve a prohibition notice to stop that activity either immediately or at the end of the period specified (<i>refer to Appendix B for an example of a prohibition notice</i>).
5. Prosecution	In addition to the enforcement outlined above, the inspector may consider that it is also necessary to prosecute. This can be either in a Magistrates' Court or Crown Court.



Failure to comply with an improvement notice

A building company was found guilty of breaching the Health and Safety at Work etc. Act by failing to comply with an improvement notice, and also found guilty of breaching the Construction (Design and Management) Regulations 2015.

During three months the company had been served with three prohibition notices and two improvement notices. The site manager was also issued with a prohibition notice because the operation of the site was far below minimum legal safety standards.

The company was fined a total of £40,000 and ordered to pay costs of £10,035.

After the hearing the HSE inspector said: 'If the HSE visits a construction site and has to issue prohibition notices preventing further work, that in itself shows that there is a very real and immediate risk to workers there, and possibly to members of the public.'

'The company failed on several fronts to safeguard the workforce from risks that are well known in the construction industry. They either did not identify those risks or neglected to manage them effectively.'

'Proper management of work activities and competent site supervision are essential, but the company fell well below the required standards'.



Section 33(1)(g) of HSWA states: it is an offence for a person to contravene any requirement or prohibition imposed by an improvement notice or a prohibition notice (including any such notice as modified on appeal).

Contravention of certain requirements of the Act can lead to summary prosecution in a Magistrates' Court (or Sheriff Court in Scotland).

In October 1992, under the provisions of the Criminal Justice Act (updated in 2003), the maximum fine that could be imposed by a Magistrates' Court or Sheriff Court was raised from £2,000 to £5,000.

This was subsequently raised to £20,000 by the Health and Safety (Offences) Act 2008, and this has now been superseded by the Legal Aid, Sentencing and Punishment of Offenders Act 2012. From 12 March 2015 the cap on fines, for offences committed on or after that date, has been removed in England and Wales.

Contravention of other provisions can result in either summary prosecution or an indictment in the Crown Court (High Court in Scotland). The maximum penalty, on summary conviction, in a Magistrates' Court is an unlimited fine for each offence, or six months' imprisonment, or both.

For offences that are dealt with at a Crown Court, there is no limit to the fine and prison sentences of up to two years can be imposed.



Breach of the Health and Safety at Work etc. Act 1974

A company director pleaded guilty to breaching Section 37 of the Health and Safety at Work etc. Act 1974, after consenting to a worker working at height in an excavator bucket.

He was sentenced to eight months in prison (suspended for two years), disqualified from acting as company director for three years, and fined £32,000 with £11,000 costs (the director was driving the excavator at the time of the offence).

2.7.4 Appeals

Anyone served with an improvement or prohibition notice has the right to appeal to an employment tribunal.

This must be done within 21 days of the issue of the notice.

The tribunal may cancel, confirm or modify the notice on appeal, following the issue of either of the following notices.

- An improvement notice: the notice will be suspended until the tribunal meets and decides the issue.
- A prohibition notice: the notice will stand until the appeal has been decided, or the tribunal orders it to be suspended.

Offences under the Act can be committed by individuals as well as by corporate bodies, such as limited companies.

When an offence has been committed, with the help or knowledge of a director, manager, company secretary or other company official, that individual person may be prosecuted as well as the company.

The same duty is placed on the Crown (for example, Government departments and the armed forces) except that the employer cannot be prosecuted. However, individual members of that organisation can be prosecuted for offences they commit, but not for those committed by their employer – Section 37.

Where a person has been prosecuted for failing to comply with a duty or requirement of the Act, and is claiming that it was not reasonably practicable for them to carry out that duty or requirement, it is the responsibility of that person to prove that it was not reasonably practicable to comply, and that there was no reasonably practicable alternative way in which they could have carried out that duty or requirement – Section 40.

2.8 Fees for intervention

The HSE introduced a fee for intervention (FFI) cost recovery scheme from October 2012, under the Health and Safety (Fees) Regulations (now amended as the Health and Safety and Nuclear (Fees) (Amendment) Regulations 2023). The regulations apply to businesses and individuals who are regulated by the HSE.

These regulations place a duty on the HSE to recover its costs for carrying out its regulatory functions from those found to be in material breach of health and safety law (such as investigations, inspections and enforcement action).

A material breach is when, in the opinion of the HSE inspector, there has been a contravention of health and safety law that is serious enough to require them to notify the person in material breach of that opinion by issuing a notification of contravention (NoC) after their visit.

The HSE will charge an hourly rate for all the time spent by the inspector in identifying the breach, including visits, letter writing, telephone conversations, drafting notices, their help to put it right, and so on, and subsequently ensuring corrective actions have been taken.

The HSE will actively inspect those businesses that are known to be high risk – construction businesses are one of these. The HSE will also visit businesses and individuals if they have information that people may be at unnecessary risk, irrespective of the business sector, or if there has been a reported incident.

Businesses and organisations are advised that if the HSE identifies a material breach of health and safety law corrective action should be taken promptly, so minimal time is spent by the investigating inspector and hence the fee will be less than if corrective action is delayed.

The HSE and Government believe it is right that businesses and organisations that break health and safety laws should pay for the HSE's time in putting matters right, investigating and taking enforcement action. Without FFI this would be paid for from the public purse.

In 2014, an independent report concluded that during the first 18 months of implementation the FFI scheme was working effectively and should be retained.

2.9 Employment Medical Advisory Service

The Employment Medical Advisory Service (EMAS) is an integral part of the HSE, and provides expert medical advice to them, as well as giving advice to a wide range of organisations and individuals.



For further information on EMAS visit the HSE website.

2.10 Health and Safety (Enforcing Authority) Regulations 1998

The responsibility for enforcing health and safety is broadly split between the HSE and the Local Authority.

These regulations provide for the transfer of the responsibility for the enforcement of health and safety legislation between the HSE and the Local Authority (and vice versa) in certain circumstances. Local Authorities are responsible for regulating health and safety in lower-risk workplaces.

2.10.1 Local Authority enforcement

Schedule 1 of the regulations lists the main activities for which the Local Authority will be responsible. These include offices, shops, warehouses and consumer services.

For further main activities allocated to Local Authorities, refer to Schedule 1 of the Health and Safety (Enforcing Authority) Regulations.

2.10.2 HSE enforcement

If a main activity is not specified in Schedule 1, the HSE will be the enforcing authority. Some examples of activities reserved to the HSE are shown below.

- Construction work.
- Mines and quarries.
- Manufacturing industry.
- Fairgrounds.
- Hospitals.
- Educational establishments.
- Agricultural activities.

2.10.2.1 Transfer of responsibility for enforcement

Where construction work is carried out on premises for which the Local Authority is normally the enforcing authority, and the work is to be carried out by persons who do not normally work at those premises, the HSE will become the enforcing authority for the duration of the work in the following circumstances.

- When the work is notifiable to the HSE by virtue of CDM.
- If, in whole or part, it involves work to the external fabric or other external parts of the structure.

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- Where work is carried out in a physically segregated area of the premises and work activities normally carried out in that area are suspended.
- When work involves the installation, maintenance or repair of gas or electrical systems.
- If work involves the use of ionising radiation (in some cases only).

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2.11 Examples of health and safety court cases

The following examples summarise the outcomes of two court cases that arose out of failings in the management of health and safety.

e.g. Regina -v- Swan Hunter Shipbuilders Ltd and Telemeter Installations Ltd

This important Court of Appeal case, resulting from a prosecution under Sections 2 and 3 of the Health and Safety at Work etc. Act 1974, demonstrated that an employer (the main contractor) has a duty to inform, instruct and supervise not only its own employees but also other workers (sub-contractors) who might, by their behaviour, endanger the main contractor's employees.

e.g. Regina -v- Associated Octel Company Ltd

This equally important Court of Appeal case demonstrates that under Section 3 of the Health and Safety at Work etc. Act 1974 an employer can be prosecuted for failing to secure the safety of an independent contractor's employees, whether or not it has been involved with that third party's work. If an employer asks an independent contractor to do work that forms part of the overall job being carried out by the employer, the employer must stipulate the conditions needed to avoid risks to health and safety and that are reasonably practicable to protect that contractor's workforce.

The HSE website breaks down regulations into easy to follow topic areas, industry sectors (such as construction) and different levels of guidance aimed at company owners through to employees. It also contains ACoPs and guidance, which are available as free downloads.

 **Copies of all acts and regulations can be downloaded from the Government's legislation website.**

2.12 Prosecutions under HSWA, the Company Directors Disqualification Act 1986 and the Fraud Act 2006

Two directors prosecuted following fatal incident

A businessman, who was disqualified from being a company director, was jailed for serious fraud and safety offences. A second businessman was given a suspended prison sentence for similar offences. The two were sentenced following joint proceedings brought by the Department for Business, Innovation and Skills (BIS) and the HSE. The safety offence related to the tragic death of a 40-year-old worker.

The first director was jailed for a total of 26 months; 16 months for a breach of Section 2(1) of the Health and Safety at Work etc. Act 1974 (HSWA); 10 months for a breach of Section 2 of the Fraud Act 2006; and a total of eight months concurrent for four breaches of Section 13 of the Company Directors Disqualification Act 1986. He was also disqualified from being a company director for a maximum of 15 years.

The second director was given a 12-month prison sentence, suspended for two years, after admitting the same breach of the HSWA, and a concurrent six months, also suspended, after pleading guilty to aiding and abetting the first director in his disqualification. He was disqualified as a director for seven years, ordered to pay £8,000 toward prosecution costs and given 150 hours community service.

The safety offences related to the directors' running of their now insolvent company, and became apparent following a fatal incident where a worker was crushed by a two tonne metal sand moulding box. The box fell from the lifting chains of a crane the worker was using to manoeuvre it. Colleagues scrambled to free him, but he was pronounced dead at the scene by paramedics.

The HSE investigated the death and identified serious concerns with the systems of work in place at the time, and with the lifting equipment. They became aware of the Companies Act 2006 offences and a joint investigation with BIS was undertaken.

The HSE found that the crane at the centre of the incident had not been checked and tested as the law requires, and there were inadequate provisions in place covering competency, supervision and training. The court heard the incident could have been prevented, had the system of work been reviewed and properly assessed.

HSE inspectors also identified problems with lead exposure at the company. The control and health surveillance measures were insufficient, meaning workers were being exposed to potentially harmful levels of lead without realising it.

The court was told that at the time of the worker's death the company was the subject of three improvement notices served by the HSE following earlier visits.

A number of important safety improvements were required, but few had been satisfactorily implemented, largely, claimed the management team, because of financial constraints. The HSE argued the fatal incident could have been avoided had the necessary changes in the relevant enforcement notices taken place.

The company was also sentenced for a breach of Section 2(1) of the HSWA, after a guilty plea was submitted on behalf of the insolvent firm by its administrators. The court imposed a fine of £100,000.

The court was told how the first director had previously been disqualified from acting as a company director for 12 years. However, he had contravened two orders by acting in that capacity in no fewer than four separate companies over a five year period, including at The Company.

He was also responsible for the cross-firing of cheques, which were written from the bank account of one of the companies, which was no longer trading, to provide funds to The Company. BIS investigators established that The Company drew almost £92,500 in this way, taking advantage of a short window after cheques were presented but before they bounced.

The investigators also established that the second director aided and abetted the first director as the registered director of The Company, performing tasks, such as writing blank cheques for the first director to use, but not fulfilling the responsibilities of being the director of the company, allowing the first director to run the business.

In his sentencing comments the judge said that the defendant had behaved in a disgraceful way and had been culpable of extremely shoddy business practice.

After reading a statement from the worker's father, the judge said the impact of the incident had been devastating: 'It was harrowing, and underlines the personal tragedy that could have been avoided'.

After sentencing the HSE director of operations said: 'The safety standards at The Company fell well short of those required, as the directors were only too aware. They knew improvements were needed to protect workers like the deceased and they had clear responsibilities as senior management to ensure the necessary changes were implemented.

'Sadly, one of the many areas that was seemingly overlooked was the system of work surrounding the overhead crane. Had this been properly assessed then the deceased's tragic death could have been prevented'.

The worker's father commented: 'I brought my son up since he was an infant and cared for him all his life until his death.

'His passing has left a huge empty void in my life, a devastating loss that I will never recover from'.

The deputy chief investigation officer from BIS said: 'Individuals are disqualified from being company directors for good reason, usually because of conduct which shows them to be unfit to operate a business.

'This case shows the tragic consequences of the defendant ignoring his disqualification'.

(Source: HSE.)



Company fined £2.6 million after worker is fatally crushed in trench

A construction company was fined £2.6 million with £54,000 costs after an employee was killed when the trench he was working in collapsed on him.

The 32-year-old worker was in a trench, laying ducting for new cable for an offshore wind farm. The trench had been dug to a depth of 2.4 m, without any shoring.

The worker became trapped in the trench after it collapsed on him. He died in hospital 10 days later.

After an investigation by the HSE, the Crown Court heard that the company failed to adequately risk assess the works or control the way in which the excavation took place.

The company pleaded guilty to breaching Section 3(1) of the Health and Safety at Work etc. Act 1974, Regulation 31(1) of the Construction (Design and Management Regulations) 2015 and Regulation 3(1)(a) of the Management of Health and Safety at Work Regulations 1999.

A HSE inspector said after the hearing: 'The level of this fine should serve as a warning to industry not to ignore health and safety matters.

'The company failed to adequately assess, plan and supervise the work being undertaken.

'Trench collapses are easy to prevent, and it is disappointing that this young man's life was lost in such a tragic way.

'The family has shown great patience and support throughout this investigation, which is a credit to both them and their son's memory'.

The deceased worker's mother said after the hearing that: 'no amount of money can bring my son back, but we hope it will help to stop anything like this happening again and stop other parents having to go through what we have been through'.

(Source: HSE.)

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GT700 Toolbox talks/supporting guidance documents

Toolbox talks on some of these topics are available in the GT700 publication. Supporting guidance documents covering some of these topics are available on our companion website.



Scan the QR code to complete a brief survey, and share your feedback on the course.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

Overview

The Construction (Design and Management) Regulations (CDM) are the main regulations that cover the management of health, safety and welfare on construction projects. The regulations apply to all construction projects, regardless of size, duration and nature of the work. The current regulations (in force from 6 April 2015) replaced the 2007 regulations.

This chapter outlines what the regulations are about, what they require, what needs to be done and by whom.

03

3.1 Introduction

The regulations were first introduced in 1994, with revisions in 2007 and 2015. While some requirements have been adjusted and developed, the overall aim remains improving health and safety within the construction industry.



Where CDM is mentioned in this chapter, it should be read as the Construction (Design and Management) Regulations 2015.

CDM focus attention on effective planning and management of all construction work, from the design concept onwards. The aim is for health and safety considerations to be treated as a normal part of a project's development, not an afterthought.

The object of CDM is to reduce the risk of harm to those that have to build, use, maintain and demolish structures.

The main aims of the regulations are listed below.

- Encourage everyone to work together to make health and safety integral to the design, construction and management of projects.
- Improve planning and management from day one to identify hazards so that they can be eliminated or properly managed.
- Have the right people, for the right job, at the right time to manage the risks on site.
- Encourage co-operation and co-ordination throughout the project.

While CDM cover most of the construction-specific risks, it is important to ensure compliance with other relevant regulations, such as the Work at Height Regulations 2005 and the Control of Substances Hazardous to Health Regulations 2002.



Every construction project or building job, no matter how small, is a CDM job. The requirements of CDM apply regardless of whether the project is notifiable or not.



CITB has produced a short video which explains the basics of CDM.

3.2 Important points

- CDM apply to all building and construction work, including new build, demolition, refurbishment, extensions, conversions, repair and maintenance.
- Designers and contractors should be appointed at the earliest opportunity to help them prepare for, and plan, the project.
- Everyone controlling construction work has health and safety responsibilities.
- Employers need to provide information, instruction, training and supervision, with workers having their needs assessed against the needs of the job. Employers are required to meet the gap in workers' skills and knowledge through provision of appropriate training.
- CDM apply to domestic client projects.
- On a project where there is more than one contractor, a principal contractor and principal designer will need to be appointed.
- Checking that working conditions are healthy and safe before work begins, and ensuring that the proposed work is not going to put others at risk, requires planning and organisation.
- A project is notifiable if construction work on a site is scheduled to: last longer than 30 working days and have more than 20 workers working simultaneously at any point in the project; or exceed 500 person days.
- CDM are supported by a regulatory package, which includes CDM, HSE CDM legal (L) series guidance and industry guidance.
- A legal series guidance (L153) supports the regulations and details the legal requirements for CDM. It should be used to help anyone who has duties to comply with the regulations.



The legal series guidance (L153 CDM) is available on the HSE website.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

A series of industry guidance documents for main duty holders sets out in practical terms what actions are required to deliver a safe and healthy project. These have been written by the Construction Industry Advisory Committee (CONIAC) with small businesses in mind.

The **main duty holders** under CDM are listed below.

- Clients (including domestic clients).
- Principal designers.
- Designers.
- Principal contractors.
- Contractors.
- Workers.

 Industry guidance for each duty holder is available on the CITB website.



 For a summary of the duty holders' main responsibilities refer to Appendix B.

3.3 Main elements to securing construction health and safety

The incorporation of the following elements into all projects is key to securing construction health and safety.

- Managing the risks to health and safety by applying the **general principles of prevention** (the Management of Health and Safety at Work Regulations 1999 (MHSWR)).
- **Appointing** the right people and organisations at the right time.
- Ensuring everyone has the **information, instruction, training and supervision** they need to carry out their jobs in a way that secures health and safety.
- Duty holders **co-operating and communicating** with each other and co-ordinating their work to promote and develop effective measures to secure health, safety and welfare.
- **Consulting** workers and engaging with them to promote and develop effective measures to secure health, safety and welfare.

3.3.1 General principles of prevention

Principal designers, designers, principal contractors and contractors must apply the general principles of prevention when carrying out their duties and use these to identify control measures required to control the risks identified on the project.

The general principles of prevention are specified in Schedule 1 to the MHSWR and referred to in CDM. They are shown below.

- Avoiding risks.
- Evaluating the risks that cannot be avoided.
- Combating the risks at source.
- Adapting the work to the individual, especially regarding the design of workplaces, the choice of work equipment and the choice of working and production methods, with a view, in particular, to alleviating monotonous work and work at a predetermined work rate and reducing their effect on health.
- Adapting to technical progress.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

- Replacing the dangerous with the non-dangerous or the less dangerous.
- Developing a coherent overall prevention policy that covers technology, organisation of work, working conditions, social relationships and the influence of factors relating to the working environment.
- Giving collective protective measures priority over individual protective measures.
- Giving appropriate instructions to employees.

3.3.2 Appointing the right people and organisations at the right time

Anyone involved in the project must ensure they have the skills, knowledge, training and experience (and if they are an organisation, the organisational capability) to carry out the work. This applies to those making the appointment, as well as those accepting the appointment.

Appointments for the project must be made as soon as practicable (for example, the principal designer should be appointed as early as possible). Failure by the client to make this appointment means that the client must fulfil the duties of the principal designer until such an appointment is made. Therefore, if the appointment is made late this could have a negative impact on the collation of data for the pre-construction information pack and design considerations may be overlooked, which could have an impact on the safety of the construction and residual maintenance requirements.

When appointing a designer or contractor, reasonable steps should be made to ensure they understand how to identify the significant risks likely to arise during either design or construction. They should also be able to prevent those risks, or manage or control them to an acceptable level.

Pre-qualification questionnaires can be a useful tool. For example, the free, publicly available PAS 91 standard: *Construction related procurement – pre-qualification questionnaire* (PAS 91) for procuring supply chain specialists includes health and safety questions, along with other matters (such as financial information). There is also the free, publicly available *Specification for collaborative sharing and use of structured health and safety information using BIM* (PAS 1192-6:2018). BIM is an intelligent 3D model-based process that gives architecture, engineering and construction professionals the insight and tools to more efficiently plan, design, construct and manage buildings and infrastructure.

PAS 1192-6 specifies requirements for the collaborative sharing of structured health and safety information throughout the project and asset life cycles. It supports the development of structured health and safety information for all construction projects progressively from the outset. The PAS provides guidance on how health and safety information is produced, flows and can be used throughout the project and asset life cycle. The principles and requirements of this PAS can be applied equally to non-BIM projects.

For further information refer to Regulation 8 *General duties*. This regulation applies to anyone working on a project and includes workers, as well as those with specific duties.



Failure to appoint the right people at the right time could have an impact on the health and safety performance and success of the project.

3.3.3 Supervision, instruction and information

Contractors and principal contractors must make sure that the supervision provided is effective and the required information is provided.

An assessment of the workforce's skills, knowledge, training and experience, plus the health and safety risks involved in the project, needs to be made to ensure the correct level of supervision, instruction and information is provided. Other factors to consider to determine the correct level of supervision to be provided are the individual's age, agility, level of safety awareness, literacy and attitude.

Anyone with a duty under CDM to provide health and safety information or instructions must ensure they are easy to understand. For example, the information should be in clear English, or other languages, as appropriate for the people using it. The use of diagrams and pictures should also be considered and information should be proportionate to the scale and complexity of the risks.

Information about hazards is essential to all project workers and managers to ensure they understand the risks involved.

Instructions are actions that must be followed to prevent or minimise those risks.

3.3.4 Co-operating, communicating and co-ordinating

The regulations stipulate that all duty holders must co-operate with other duty holders involved in the project or any project adjoining the site (Regulation 8(4)) and co-ordinate their work to ensure effective health and safety. They must also communicate with each other to ensure that everyone understands the risks and the measures that need to be put into place to control those risks.



Regulation 4 requires that the client takes reasonable steps to ensure that the principal designer and principal contractor comply with their duties, which include the requirement to plan, manage, monitor and co-ordinate their work.

There are many examples of where the various contractors involved in a project can co-operate, communicate and co-ordinate their work, agreeing who works where and when so that construction work runs smoothly and without the risks created by one set of workers endangering the health and safety of other workers.

Daily briefings and project meetings are also good examples of achieving this.

3.3.5 Consulting and engaging with workers

Regulation 14 places a legal duty on principal contractors to consult and engage with workers.

Additionally, the **Safety Representatives and Safety Committee Regulations 1977** and the **Health and Safety (Consultation with Employees) Regulations 1996** require employers to consult their workforce about health and safety.

Worker consultation and engagement is basically effective two-way communication between an employer and its workforce. It can help workers spot workplace risks and know what to do about them, ensure that controls are effective and increase workers' commitment to working in a safe and healthy way.

The following are requirements for the principal contractor.

- Make and maintain arrangements that will enable the principal contractor and the workers engaged in construction work to co-operate effectively in developing, promoting and checking the effectiveness of measures to ensure the health, safety and welfare of the workers.
- Consult with workers or their representatives in good time on matters connected with the project, which may affect their health, safety or welfare.
- Ensure that workers or their representatives can inspect and take copies of any information that the principal contractor has, or which these regulations require to be provided to the principal contractor, which relate to the health, safety or welfare of workings at the site. There are a number of exceptions to this requirement, which are detailed in Regulation 14(c)(i-v).

Encouragement and ample opportunity must be given for all members of the workforce to feed back to management any concerns that they might have regarding health and safety. It is the workforce that has first-hand experience of actually carrying out the job and may, therefore, be more knowledgeable about the risks involved.

Depending upon the circumstances, consultation might be carried out directly with a single worker, groups of workers or through health and safety representatives, whether trade union-appointed or not.



The HSE website hosts the leadership and worker involvement toolkit (LWIT), which aims to help contractors and managers learn how to make health and safety improvements in their business.

3.4 The regulations

CDM place responsibility for managing the health and safety of a construction project on the many duty holders.

The **client** must ensure that suitable arrangements are made, reviewed and maintained to manage the health and safety risks involved in the project.

For projects involving more than one contractor the regulations require the client to appoint a principal designer and principal contractor and to make sure they carry out their duties.

The **principal designer** is required to plan, manage, monitor and co-ordinate the work during the pre-construction phase.

They must also liaise with the principal contractor to provide them with the relevant information for planning, management and monitoring during the construction phase.

The main duty of the **principal contractor** is to plan, manage, monitor and co-ordinate the work during the construction phase. They must also liaise with the client and principal designer throughout the project, including during the pre-construction phase.

Depending on the nature of the project the principal designer and principal contractor may be supported by **designers, contractors** and **workers**.

There are three important phases of the project, known as the pre-construction phase, the construction phase and the post-construction phase.

The **pre-construction phase** covers the inception, design and planning stage of a project (before the construction or building work starts), although it is acknowledged that design and planning continues into the construction phase.

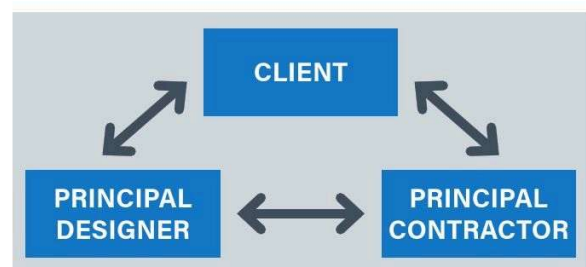
Data for the *pre-construction information* will be collated during this stage.

The **construction phase** runs from start to finish of the construction or building work.

The *construction phase plan* will be followed during this stage.

The **post-construction phase** is the practical completion of the construction or building work, including handover.

The *health and safety file* will be completed and handed over during this stage.



A project is notifiable if the construction work is scheduled to take more than 30 working days and have more than 20 workers working simultaneously or exceed 500 person days.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

The following parts of the regulations apply to the whole construction process on all projects, from concept to completion.

Part 1	Introduction.	Part 5	General.
Part 2	Client duties.	Schedule 1	Particulars to be notified under Regulation 6.
Part 3	Health and safety duties and roles.	Schedule 2	Welfare facilities.
Part 4	General requirements for all construction sites.	Schedule 3	Work involving particular risks.



Parts 1, 2, 3 and 5 of CDM cover the whole construction project, from concept to completion.
Part 4 sets out a number of provisions that apply to work carried out on the construction site.

Where there is more than one contractor, or it is reasonably foreseeable that more than one contractor will be working on the project at any time, the client needs to appoint, in writing, a principal designer and principal contractor and ensure that a construction phase plan is prepared. **These appointments must be made regardless of whether a project is notifiable or not.**

The requirement for duty holders to have the skills, knowledge, training and experience (or where they are an organisation, the organisational capability) and the arrangements for the co-ordination of work and co-operation between all those working on the project **applies to all projects.**



For definitions, in accordance with CDM, refer to Appendix A.
For Schedule 2 Welfare facilities, refer to Appendix D.

3.5 Notification (Form F10)

A project is notifiable by the client when it is scheduled to last longer than 30 working days and have more than 20 workers working simultaneously at any point in the project or exceed 500 person days.

A day is taken as being eight hours' work and a working day is where work is planned. **If there is a major change that will result in a significant delay or change to the project itself, the work could become notifiable at a later date.**

Holidays and weekends do not count if construction work is not carried out at those times.



A person day is the number of hours worked by an individual and includes any shift work. In any one working day, where shift work takes place, there will be more than one person day in the working day. A person day also includes any other length of time worked that is less than one full day.

The responsibility of the designers and contractors to ensure that the client is aware of their CDM duties is vitally important. As construction professionals they are in the best place to advise on the planned timescales.

Clients must ensure an up-to-date copy of the notice is displayed on the construction site and that it can be easily understood, taking into consideration workers whose first language may not be English. The client can do this themselves or ask the principal contractor or contractor to do so.

The notice to the relevant enforcing authority must be in writing. The enforcing authority could be the **HSE**, the **Office of Rail and Road**, or the **Office for Nuclear Regulation**.

Details of the information required for the notification are given in Schedule 1 of CDM and include details such as the planned start date, contact details of the duty holders and the planned number of contractors on the site.

The easiest way to notify any project is using the online F10 form. The online system also allows the retrieval, amendment and re-submission of previously completed F10 forms.



The F10 form is located in the CDM section of the HSE website.

The notification must be sent as soon as practicable before the construction phase begins. If not all of the details are known at that time, as much detail as possible must be sent and the remaining details forwarded as soon as they become known.

Where the client is a domestic client the duty to notify can be carried out by either the contractor (if there is only one contractor), the principal contractor (where there is more than one contractor) or the principal designer (where there is a written agreement that the principal designer will fulfil the client's duties).



The F10 form is a living document that may need updating throughout the project.

3.6 Duty holders

3.6.1 Client

Clients

A **client** is any person for whom a project is carried out.

A **commercial client** is an organisation or individual for whom a construction project is being carried out in connection with a business, whether the business operates for profit or not.

A **domestic client** is a client for whom a project is being carried out, which is not in the course or furtherance of a business of that client.

The term **client** includes both domestic clients and commercial clients. However, Regulation 7 limits the way in which CDM apply to a domestic client.

Clients have an important role in the construction process. The regulations make them accountable for the impact that their decisions and approach have on the health, safety and welfare of those working on the project, plus anyone who may be affected by those project activities. The client has contractual control, makes appointments and determines the money, time and resources available for the project.

Where it is not clear who the client is, due to the number of individuals and organisations involved, Regulation 4(8) allows all the possible clients to elect one or more person(s) to be treated as the client. When deciding who this could be consideration should be given to who:

- decides what is constructed where, when and by whom
- commissions the design and construction work
- initiates the work
- is at the head of the procurement chain
- appoints contractors (including the principal contractor) and designers (including the principal designer).

 **If a commercial client fails to appoint either a principal designer or a principal contractor they must fulfil those duties themselves, until an appointment has been made.**

Further details of client duties can be found in the legal series and industry guidance (L153), and are summarised below.

Summary of client duties	
Commercial client	Domestic client
■ Make arrangements to manage the project without risk to health and safety. ■ Ensure welfare arrangements are provided, as detailed in Schedule 2. ■ Allow sufficient time and resources for all stages. ■ Provide pre-construction information to designers and contractors as soon as possible. ■ Ensure, before the construction phase begins, a construction phase plan is drawn up by the principal contractor, or the contractor if there is only one contractor. ■ Ensure the principal designer prepares the health and safety file for the project. ■ Take reasonable steps to ensure the principal designer and principal contractor comply with their duties. ■ If the client's interest in the structure changes, they must pass the health and safety file onto their successor, making sure they are aware of the contents of the file. ■ Ensure those they appoint have the skills, knowledge, training, experience and capabilities to carry out those roles.	■ Where there is one contractor the client's duties must be carried out by the contractor. ■ Where there is more than one contractor the client's duties must be carried out by the principal contractor. ■ Domestic clients can have a written agreement to transfer their client duties to the principal designer. In this case, the principal designer must fulfil the duties of the client as well as their own duties, and the principal contractor will work to the principal designer as the client. ■ Where there is more than one contractor a principal contractor and principal designer should be appointed. ■ If the domestic client fails to appoint a designer, the designer in control of the pre-construction phase becomes the principal designer. ■ If the domestic client fails to appoint a contractor, the contractor in control of the construction phase is the principal contractor.

 **For further information on working for a domestic client refer to Appendix 6 of the legal series guidance (L153), or refer to the industry guidance for clients.**

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

3.6.2 Principal designer



Principal designer

The **principal designer** is the designer with control over the pre-construction phase of the project. They are appointed by the client.

Principal designers are designers appointed by the client, and are responsible for influencing how the health and safety risks should be controlled and incorporated into the project's delivery.

They must plan, manage, monitor and co-ordinate matters relating to health and safety during the pre-construction phase to ensure that the project is carried out without risks to health or safety, taking into account the principles of prevention.

They must consider their own skills, knowledge, training, experience and, where they are an organisation, they must also consider their organisational capabilities and seek advice where required. They may also have separate duties as a designer.

Further details of principal designers' duties can be found in the legal series (L153) and industry guidance, summarised below.

Summary of principal designer duties

- Plan, manage, monitor and co-ordinate the pre-construction phase.
- Co-ordinate matters relating to health and safety during the pre-construction phase.
- Estimate the period of time required to complete work stages.
- Take account of the general principles of prevention.
- Identify, eliminate or control foreseeable risks to health and safety of any person carrying out construction work, maintaining or cleaning a structure and/or using a structure designed as a workplace.
- Ensure designers comply with their duties.
- Ensure all persons co-operate with the client, principal designer and each other.
- Assist the client in the provision of the pre-construction information.
- Provide pre-construction information promptly and in a convenient form to every designer or contractor.
- Liaise with the principal contractor and share information relevant to the planning, management and monitoring of the construction phase and the co-ordination of health and safety during construction.
- Review, update and complete the health and safety file and pass to the client upon completion.
- Hand over the health and safety file to the principal contractor if their appointment finishes before the end of the project.



For further information refer to the industry guidance for principal designers.

3.6.3 Designer



Designer

A **designer** is an organisation or individual who prepares or modifies a design for a construction project (including the design of temporary works) or arranges for or instructs someone else to do so.

Designers include architects, consulting engineers, quantity surveyors, interior designers and contractors, and may include individual tradespeople on smaller domestic projects.

Designers are in a unique position at an early stage of a project to reduce the potential risks to health and safety that could arise during the construction phase or at a later stage (such as during maintenance of the completed structure).

Therefore, designers should address health and safety issues from the outset. If designers fail to consider health and safety at an early stage this could result in delays to the project and could cause problems during the construction phase, as contractors will need to identify ways to undertake the work safely.

Further details of designers' duties can be found in the legal series (L153) and industry guidance, and are summarised below. These duties become applicable as soon as a design has been prepared, which may be used for construction work. It is irrelevant if planning permission and funds have not yet been secured.

The duties of a designer are outlined on the table on the next page.



Designers have the same duties when working for a domestic client as they do when working for a commercial client.

Summary of designer duties

- Must not commence work unless they are satisfied that the client is aware of their duties.
- Eliminate hazards and reduce risks during design.
- Provide information about remaining risks to the principal designer and ensure information is in the health and safety file.
- Take into account the principles of prevention when preparing or modifying a design.
- Eliminate health and safety risks that may affect those carrying out future construction work, maintaining or cleaning a structure or using a structure designed as a workplace.
- Take steps to reduce any residual risks through the design process.
- Supply information to the client, other designers and contractors, so they can comply with their duties.
- The same duties apply to designers for designs that are prepared or modified outside of Great Britain.



For further information refer to the industry guidance for designers.



For an example of CDM RAG lists (practical aids for designers on what to eliminate or avoid and what to encourage) refer to Appendix C.

3.6.4 Principal contractor



Principal contractor

A **principal contractor** is the organisation or person who co-ordinates the work of the construction phase of the project involving more than one contractor, so that it is carried out in a way that secures health and safety.

A principal contractor is appointed by the client and they, and anyone they appoint, must have the skills, knowledge, training and experience (and where they are an organisation, the organisational capability) to carry out their work in a way that secures health and safety. The principal contractor must ensure the principles of prevention are taken into account. They must plan, manage, monitor and co-ordinate the construction phase to ensure that construction work is carried out without risks to health and safety.

Plan

- Take into account risks to workers, members of the public and clients' employees.
- Consider risks likely to arise during construction.
- Provide the right level of supervision, necessary information, instruction and training.

Manage

- Ensure those engaged to carry out the work are capable.
- Put preventative and protective measures in place.
- Provide the right plant, equipment and tools.
- Demonstrate good leadership.
- Ensure workers understand the risks and control measures, and who has responsibility for health and safety.
- Investigate incidents so that lessons can be learnt.



Good supervision is part of showing good leadership in health and safety.

Monitor

- Check standards regularly, taking into account the rapidly changing construction environment, and allocate sufficient time and effort for this.
- Treat health and safety in the same way as other important business aspects.
- Take prompt action.
- Use both active and reactive monitoring.



Active monitoring includes routine checks of areas, plant and equipment, or health risk management to prevent harm.

Reactive monitoring includes investigating near-miss incidents, injuries and monitoring ill health cases.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

Co-ordinate

- Ensure contractors co-operate with each other.
- Apply the general principles of prevention.
- Follow the construction phase plan.
- Liaise with those on site so they understand the health and safety standards expected and gain their co-operation.
- Work with the client to ensure co-ordination of contractors on neighbouring sites.



There should only be one principal contractor for a project at any one time. Their role, when working on a project for a domestic client, is no different to the role undertaken for a commercial client.

Summary of principal contractor duties

- Plan, manage, monitor and co-ordinate the construction phase plan.
- Estimate the time required to complete the work.
- Take into account the general principles of prevention.
- Organise co-operation between contractors.
- Comply with the health and safety legal requirements.
- Ensure the construction phase plan is followed.
- Provide suitable site induction.
- Prevent unauthorised access to the site.
- Provide welfare facilities.
- Liaise with the principal designer.
- Consult and engage with workers.
- Review, update and complete the health and safety file, if the principal designer's appointment finishes before the end of the project.



Principal contractor fined for safety failings during property development

A principal contractor was fined £50,000 and ordered to pay £5,478 costs after the company failed to effectively plan and manage works at a property development. This included failing to ensure that appropriate measures were in place to control risks on site, including falls from height, exposure to asbestos and risk of fire.

The principal contractor pleaded guilty to breaching Regulation 13(1) of the Construction (Design and Management) Regulations 2015 and Section 33(1) of the Health and Safety at Work etc. Act 1974.



For further information refer to the industry guidance for principal contractors.

3.6.5 Contractor



Contractor

A **contractor** is anyone who directly employs or engages construction workers or manages construction. A contractor can be an individual, sole trader, self-employed worker or a business that carries out, manages or controls construction work as part of their business.

A contractor must plan, manage and monitor how the construction work is carried out, either by the contractor or by the workers under the contractor's control. If a contractor gets involved in any design work (such as temporary work or design of a hot air system) they could also have duties as designers.



The duties on contractors apply whether the workers under their control are employees, self-employed or agency workers.

All contractors, including, for example, utility companies, specialist contractors and the self-employed, have a part to play in ensuring health and safety on site, via the proper co-ordination of their work, underpinned by effective communication and co-operation.

The main duties of contractors are outlined on the table on the next page.

Summary of contractor duties

- Check that the client is aware of their duties.
- Plan, manage and monitor construction work.
- If there is only one contractor on site, that contractor must take into account the principles of prevention, estimate the time required to complete the project and draw up the construction phase plan.
- Comply with directions given by the principal designer or principal contractor.
- Comply with the construction phase plan.
- Consult workers who are their employees.
- Appoint workers who have, or are in the process of obtaining, the necessary skills, knowledge, training and experience to carry out the tasks that have been allocated.
- Provide supervision, as required, depending on the hazards, risks, skills, knowledge, training and experience of the individuals.
- Provide information and instruction.
- Provide a site induction (if not already provided by the principal contractor).
- Prevent unauthorised access to site.
- Provide welfare facilities for their own employees who are working on the site or anyone else working under their control.
- Contractors appointed by the client (such as those on term contracts) are under the control of the principal contractor for the purposes of planning, managing and monitoring the construction work.



Contractors have the same duties when working for a domestic client as they do when working for a commercial client.



For further information refer to the industry guidance for contractors.

3.7 Workers

CDM recognise the importance of workers.

They help managers and workers to work together to improve health and safety, which will result in fewer construction workers suffering fatal injuries, becoming injured and/or suffering from ill health.

Employers, contractors and principal contractors should provide workers with the following.

- Health and safety information.
- Site induction, which covers site familiarisation and orientation (not just training).
- The necessary health and safety training, relevant to the work activities being carried out, and consultation and engagement on health and safety matters.
- A respected and trusted workplace health and safety culture.
- Appropriate supervision, relevant to the work activities being carried out, and the skills, knowledge and training of the workers involved.
- A safe place to work by managing hazards and communicating those control measures to workers.
- An explanation of the arrangements for co-operation and co-ordination.
- Adequate clean and accessible welfare facilities for men and women.

Where English is not the worker's first language, in order for contractors to fulfil their duties they could consider translating the site rules, using interpreters for inductions and task briefings, or supplementing written notices with symbols or diagrams.



For further information refer to the industry guidance for workers.

3.8 Project documents

With regard to project documentation, CDM require the creation of a construction phase plan for all projects and, in some cases, a health and safety file.

Furthermore, the regulations require that relevant pre-construction information is gathered and compiled to form the basis of the construction phase plan for all projects.

This must include all the project-specific information that is relevant to health and safety during construction.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

3.8.1 Pre-construction information

Pre-construction information provides health and safety information needed by designers and contractors, who are bidding for work on the project or who have already been appointed, to enable them to carry out their duties. It also provides information to the principal designers and principal contractors in planning, managing, monitoring and co-ordinating the work of the project, and it will form the basis of the construction phase plan.

It is the client's duty to provide pre-construction information. For projects where there is more than one contractor the client should expect the principal designer to help them bring the pre-construction information together, help them identify what must be obtained and provide it to the designers and contractors.

The client or principal designer may have to approach other organisations (such as utility companies or asbestos surveyors) to gather some of the information required.

Information for the file must:

- be relevant to the project
- be proportionate given the health and safety risks involved.
- have the appropriate level of detail

Where the client has created a useful pack of information, the tendering contractors' responses to questions asked can be used as part of the client checks to ensure that people and organisations appointed have the necessary skills, knowledge, training and experience (and, if an organisation, the organisational capability) to manage the health and safety risks.

3.8.2 Construction phase plan

The construction phase plan must record the following information.

- Health and safety arrangements for the construction phase.
- Site rules.
- Specific control measures where a worker could be put at risk, as detailed in Section 3.10 (**Schedule 3 of CDM**).

Information included in the plan must:

- be relevant to the project
- have sufficient detail to set out the arrangements, site rules and special measures needed to manage the construction phase
- be proportionate to the scale and complexity of the project and risks involved.

The client must ensure the construction phase plan is drawn up **before** the construction phase begins. For projects involving more than one contractor the principal contractor is responsible for drawing up the plan.

For single contractor projects the contractor is responsible. The principal designer must help the principal contractor to prepare the plan by providing any relevant information that they hold. As the project develops it is likely that the construction phase plan will be amended and further developed in the light of emerging issues and situations.

It is a live working document that is the basis for the effective health and safety management of the project.

The principal contractor or contractor is responsible for the following.

- Preparing a construction phase plan, before the start of the construction phase, which is sufficient to ensure that the construction phase is planned, managed and monitored in such a way that construction work can be carried out without risk to health or safety, so far as is reasonably practicable, paying adequate regard to the pre-construction information provided by the designers.
- Throughout the project, reviewing, revising and refining the plan as often as is appropriate, so that it continues to be sufficient to fulfil the above requirement.
- Arranging for the plan to be implemented in such a way as to ensure, so far as is reasonably practicable, the health and safety of all persons carrying out construction work and other persons who may be affected by it.

Generally, during the construction phase, the construction phase plan will be expanded to outline the following.

- Details of the arrangements for protecting the health and safety of all persons who may be affected in any way by the construction work.
- Arrangements for the monitoring of the health and safety performance of persons involved in construction work to ensure they are complying with relevant statutory provisions and the construction phase plan.
- Information concerning the welfare arrangements that have been made.



Relevant parts of the information contained in the construction phase plan must be made available to, or be made known to, contractors before construction commences, so that they may be aware of risks to health and safety that may arise for their employees.

With this knowledge they will be able to meet the requirements that are imposed on them under the construction phase plan. They obviously also have to meet the requirements that are imposed on them by the relevant statutory provisions.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

CITB has designed a free CDM Wizard tool, which is available to download as an app or desktop version. The tool is intended for use on small-scale jobs, such as domestic client work (for example, installing a kitchen, building an extension, structural refurbishment and roofing work).

It is quick to use and produces a simple construction phase plan.

www For further information on the CDM Wizard visit the CITB website.

! Construction phase plans are required for all construction work under CDM. They do not replace risk assessments and method statements. They are a plan to show how the work will be managed and to identify significant hazards associated with the work.



CDM Wizard app

03

3.8.3 Health and safety file

The purpose of the health and safety file is to ensure that, at the end of the project, the client has information about the health and safety risks that anyone carrying out subsequent construction work on the building will need to know about.

The client must ensure that the principal designer prepares the health and safety file and that it is revised, as appropriate, and kept available for inspection by any person who may need to refer to it to obtain necessary information to undertake the work safely.

This means that the role involves selecting relevant information to include, and possibly rejecting other material that is submitted.

For example, putting the construction phase method statements about groundworks in the file is unlikely to be useful in the future, whereas identifying the position and size of the crane used for lifting in steelwork or air-conditioning units may be of use.

If the role of the principal designer finishes before the end of the project, the client should ensure that the file is handed to the principal contractor. The emphasis is on information that has a relevance to the future.

At the completion of the project, the file is given to the client and, unless further changes to the structure are made, it then remains as a permanent record of how the project was designed and built.

3.9 General requirements for all construction sites

Part 4 of the regulations sets out a number of provisions (listed below) that relate specifically to the construction site.

- Applies only to a construction site.
- Requires a contractor to comply with the requirements of this part.
- Requires a domestic client, who controls the way in which construction work is carried out, to comply with the requirements of this part, so far as they relate to matters within the client's control.

! The duties in the following table apply to all construction sites, regardless of size, nature or duration.

Regulation number and title	Details of duties and requirements
16. Application of Regulations 17 to 35.	This regulation states that every contractor carrying out construction work must comply.
17. Safe places of work.	Every place of work must be safe to access, egress and to work at. Unauthorised access must be prevented and sufficient working space must be provided.
18. Good order and site security.	Sites must be tidy, secure (to prevent unauthorised access), have their perimeter identified by suitable signs and have no projecting sharp objects.
19. Stability of structures.	Buildings and structures must not be allowed to become unstable during work and any supports provided must be adequate for the job.
20. Demolition or dismantling.	This work must be carried out so as to prevent any danger and there must be a written plan (for example, method statement) in place before work starts.
21. Explosives.	Explosives must be stored, transported and used safely. Steps must be taken to ensure persons are not exposed to risk of injury from the explosion or the projected or flying material.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS

Regulation number and title	Details of duties and requirements
22. Excavations.	Work in excavations must be properly planned. They must not be allowed to collapse or have materials falling or slipping into them. No-one should become trapped because of inadequate shoring. Excavations must be inspected and reports written as appropriate. Work in an excavation must not start where an inspection has revealed that it is not safe to do so.
23. Cofferdams and caissons.	Cofferdams and caissons must be suitably designed, constructed, maintained and inspected. They must be appropriately equipped so that workers can gain shelter or escape if water or materials enter them. Cofferdams and caissons must be inspected by a competent person at the start of every shift or if the strength or stability has been affected. If the inspection reveals it is not safe then work must not start until this has been rectified.
24. Reports of inspections.	The duty to carry out inspections refers to Regulations 22 and 23 and requires inspections to be made at the start of every shift and after any event likely to affect the safety of the excavation, cofferdam or caisson. The person carrying out the inspection must inform the person on whose behalf the inspection was carried out, before the end of the shift, of any health and safety risks identified. A written record of an inspection must be made at intervals not exceeding seven days. It must be retained until completion of the project and then for a further three months.
25. Energy distribution installations.	Energy distribution installations must be located, checked and indicated. Overhead power cables must be protected against being damaged or causing injury or damage. Work must not take place where there is a risk of damage to, or accidental disturbance of, energy distribution systems, unless suitable control measures have been taken.
26. Prevention of drowning.	Where there is risk of a person drowning because of falling into water or other liquid, suitable measures must be put in place to prevent falls and, where a risk remains, minimise the risk of drowning and ensure there is a rescue plan and maintained equipment in place. Where workers are transported over water, to and from their place of work, the vessel must not be overcrowded or overloaded.
27. Traffic routes.	Traffic routes must be organised to protect people from injury from vehicles and be suitable for the number of vehicles and persons using them. Traffic routes must be properly maintained, suitably signed and regularly inspected. Where it is unsafe for pedestrians to use gates intended for use by vehicles, separate pedestrian gates must be provided, marked and kept free of obstruction.
28. Vehicles.	Arrangements must be made to prevent unintended movement of any vehicle. Vehicles must be used safely, not overloaded, and be prevented from falling into any excavation. No-one must be allowed to ride on any vehicle unless it is designed to carry passenger(s) and it is safe to do so. No-one must remain on any vehicle that is being loaded unless a safe place is provided and maintained on the vehicle.
29. Prevention of risk from fire, flooding, and so on.	Steps must be taken to avoid the risk of fire, explosion, flooding and asphyxiation from any substance.
30. Emergency procedures.	A plan must be in place for the safe evacuation of all people on site in situations where there is a foreseeable risk of an emergency. Everyone on site must be made aware of the emergency plan and it must be practised at suitable intervals.
31. Emergency routes and exits.	Adequate means of evacuation (emergency escape routes) to a safe place must be established. Routes must be kept clear of obstruction and be adequately signed.
32. Fire detection and fire-fighting.	Suitable fire-fighting equipment, fire detection equipment and alarms must be provided, examined and tested at suitable intervals and be suitably located. Manual fire-fighting equipment (such as hand-held extinguishers) must be easy to access and indicated by appropriate signs. An appropriate number of on-site staff must be trained in the selection and use of fire-fighting equipment.
33. Fresh air.	Places of construction work or on the approach to construction work must have adequate fresh or purified air available. Where fresh or purified air is provided by plant, it must be equipped with suitable audible or visible warnings to indicate any inadequacy in the supply or machine failure.
34. Temperature and weather protection.	Steps must be taken to ensure that indoor temperatures are reasonable. Outdoor workplaces must be arranged to provide adequate protection against adverse weather, taking into account usage and protective clothing or equipment provided.
35. Lighting.	Every place of work, its access and egress routes and any traffic route must be adequately lit, preferably by natural light. Where lighting is by artificial means, a back-up system must be in place where failure of the primary system would result in risks to health or safety. Artificial light must not adversely affect or change the perception of any health and safety sign or signal.

3.10 Work involving particular risks (Schedule 3)

A construction phase plan, where applicable, must include specific measures concerning work that falls within one or more of the categories set out in Schedule 3, listed below.

- Work that puts workers at risk of burial under earthfalls, engulfment in swampland or falling from a height, where the risk is particularly aggravated by the nature of the work or processes used or by the environment at the place of work or site.
- Work that puts workers at risk from chemical or biological substances constituting a particular danger to the health or safety of workers or involving a legal requirement for health monitoring.
- Work with ionising radiation requiring the designation of controlled or supervised areas under Regulation 16 of the Ionising Radiations Regulations 2017.
- Work near high-voltage power lines.
- Work exposing workers to the risk of drowning.
- Work on wells, underground earthworks and tunnels.
- Work carried out by divers having a system of air supply.
- Work carried out by workers in caissons with a compressed air atmosphere.
- Work involving the use of explosives.
- Work involving the assembly or dismantling of heavy, prefabricated components.



Details of the assembly of heavy, prefabricated components (such as this truss lift) must be included in the construction phase plan

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS – APPENDIX A

Appendix A – Definitions (Regulation 2)

Design. Includes drawings, design details, specifications, bills of quantities (including specification of articles or substances) relating to a structure, and calculations prepared for the purpose of a design.

Construction work. Carrying out any building, civil engineering or engineering construction work, such as those listed below.

- Construction, alteration, conversion, fitting out, commissioning, renovation, repair, upkeep, redecoration or other maintenance (including cleaning that involves using water or an abrasive at high pressure), cleaning (using corrosive or toxic substances), decommissioning, demolition or dismantling of a structure.
- Preparatory works for an intended structure, including site clearance, exploration, investigation (but not site survey) and excavation (but not pre-construction archaeological investigations), and clearance for preparation of the site or structure for use of occupation at its conclusion.
- Assembly on site of prefabricated elements to form a structure or the disassembly on site of the prefabricated elements, which immediately before disassembly formed such a structure.
- Removal of a structure or of any product or waste resulting from demolition or dismantling of a structure from disassembly or prefabricated elements, which immediately before such disassembly formed such a structure.
- Installation, commissioning, maintenance, repair or removal of mechanical, electrical, gas, compressed air, hydraulic, telecommunications, computer or similar services, which are normally fixed within or to a structure.

Structure. This means any building, timber, masonry, metal or reinforced concrete structure, railway line or siding, tramway line, dock, harbour, inland navigation, tunnel, shaft, bridge, viaduct, waterworks, reservoir, pipe or pipeline, cable, aqueduct, sewer, sewerage works, gas holder, road, airfield, sea defence work, river work, drainage work, earthwork, lagoon, dam, wall, caisson, mast, tower, pylon, underground tank, earth retaining structure or structure designed to preserve or alter any natural feature, fixed plant and any structure similar to those listed, or formwork, falsework, scaffold or other structure designed or used to provide support or means of access during construction work. (*Note: any reference to a structure includes part of a structure.*)

Project. A project which includes or is intended to include construction work, including planning, design, management or other work involved in a project until the end of the construction phase.

Notifiable project. Specific details of the project have to be notified to the relevant enforcing authority, the HSE (or Office of Rail and Road, or Office of Nuclear Regulation) by the client as soon as practicable before the construction phase begins. A project is notifiable if the construction work on a construction site is scheduled to last longer than 30 working days and have more than 20 workers working simultaneously at any point in the project or exceed 500 person days.

The **construction phase** starts when construction work on the project commences, and ends when construction work on that project is completed.

Client. A client may be a single person or an organisation. They are the people for whom the work is being carried out. They have duties under CDM when a project is commissioned in connection with a business activity, even if it is commissioned by a not-for-profit organisation. Whether or not the client's duties apply will be obvious on many occasions, but may require some delicate questioning of the client by the designer, contractor or others.

Domestic client. A person who has construction work carried out in their own home, or the home of a family member, which is not done as part of a business, whether for profit or not. A domestic client can transfer their duties to a contractor, principal contractor or principal designer. Regulation 7 limits the way in which the regulations apply to domestic clients.

Principal designer. The person appointed by the client on projects that have more than one contractor. This can be an individual or an organisation with sufficient knowledge, skills, training and experience (and if an organisation, the organisational capability) to carry out the role for the construction project.

Designer. Any person who whilst at work (whether they are paid or not) carries out any design work, including modification, or arranges for someone under their control to do design work.

Principal contractor. The contractor appointed by the client. Their most important duties are to co-ordinate and manage the construction phase of the project, and ensure the health and safety of everyone involved in the construction work or anyone who may be affected by it.

Contractor. Can be an individual or a company who are completing the actual construction work.

Appendix B – Summary of duty holders' roles and duties under CDM

CDM duty holders	Who are they?	Summary of role/main duty
Clients	Organisations or individuals for whom a construction project is carried out.	Make suitable arrangements for managing a project. This includes making sure: - other duty holders are appointed - sufficient time and resources are allocated - relevant information is prepared and provided to other duty holders - the principal designer and principal contractor carry out their duties - welfare facilities are provided.
Domestic clients	People who have construction work carried out on their own home, or the home of a family member, that is not done as part of a business, whether for profit or not.	Their duties as a client are normally transferred to either: - the contractor on a single contractor project, or - the principal contractor, on a project involving more than one contractor. However, the domestic client can choose to have a written agreement with the principal designer to carry out the client duties.
Designers	Those who, as part of a business, prepare or modify designs for a building, product or system relating to construction work.	When preparing or modifying designs, to eliminate, reduce or control foreseeable risks that may arise during: - construction, and - the maintenance and use of a building once it is built. Provide information to other members of the project team to help them fulfil their duties.
Principal designers	Designers appointed by the client in projects involving more than one contractor. They can be an organisation or an individual with sufficient knowledge, experience and ability to carry out the role.	Plan, manage, monitor and co-ordinate health and safety in the pre-construction phase of a project. This includes: - identifying, eliminating and controlling foreseeable risks - ensuring designers carry out their duties. Prepare and provide relevant information to other duty holders. Liaise with the principal contractor to help in the planning, management, monitoring and co-ordination of the construction phase.
Principal contractors	Contractors appointed by the client to co-ordinate the construction phase of a project where it involves more than one contractor.	Plan, manage, monitor and co-ordinate the construction phase of a project. This includes: - liaising with the client and principal designer - preparing the construction phase plan - organising co-operation between contractors and co-ordinating their work. Ensure the following. - Suitable site inductions are provided. - Reasonable steps are taken to prevent unauthorised access. - Workers are consulted and engaged in securing their health and safety. - Welfare facilities are provided.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS – APPENDIX B

CDM duty holders	Who are they?	Summary of role/main duty
Contractors	Those who do the actual construction work and can be either an individual or a company.	Plan, manage and monitor construction work under their control so that it is carried out without risks to health and safety. For projects involving more than one contractor, co-ordinate their activities with others in the project team – in particular, comply with directions given to them by the principal designer or principal contractor. For single contractor projects, prepare a construction phase plan.
Workers	The people who work for, or under, the control of contractors on a construction site.	They must: ■ be consulted about matters that affect their health, safety and welfare ■ take care of their own health and safety and that of others who may be affected by their actions ■ report anything they see that is likely to endanger their own or others' health and safety ■ co-operate with their employer, fellow workers, contractors and other duty holders.

(Reproduced from the Construction (Design and Management) Regulations 2015 legal series (L153 series) guidance book.)



All duty holders must co-operate with each other and co-ordinate their work to ensure health and safety on site.

Appendix C – Schedule 2 Welfare facilities

Regulations 4(2)(b), 13(4)(c) and 15(11).

1. Sanitary conveniences

- (1) Suitable and sufficient sanitary conveniences must be provided or made available at readily accessible places.
- (2) So far as is reasonably practicable, rooms containing sanitary conveniences must be adequately ventilated and lit.
- (3) So far as is reasonably practicable, sanitary conveniences and the rooms containing them must be kept in a clean and orderly condition.
- (4) Separate rooms containing sanitary conveniences must be provided for men and women, except where and so far as each convenience is in a separate room, the door of which is capable of being secured from the inside.

2. Washing facilities

- (1) Suitable and sufficient washing facilities, including showers if required by the nature of the work or for health reasons, must so far as is reasonably practicable, be provided or made available at readily accessible places.
- (2) Washing facilities must be provided:
 - (a) in the immediate vicinity of every sanitary convenience, whether or not also provided elsewhere; and
 - (b) in the vicinity of any changing rooms required by paragraph 4, whether or not provided elsewhere.
- (3) Washing facilities must include:
 - (a) a supply of clean hot and cold, or warm, water (which must be running water so far as is reasonably practicable)
 - (b) soap or other suitable means of cleaning; and
 - (c) towels or other suitable means of drying.
- (4) Rooms containing washing facilities must be sufficiently ventilated and lit.
- (5) Washing facilities and the rooms containing them must be kept in a clean and orderly condition.
- (6) Subject to paragraph (7), separate washing facilities must be provided for men and women, except where they are provided in a room the door of which is capable of being secured from inside and the facilities in each room are intended to be used by only one person at a time.
- (7) Sub-paragraph (6) does not apply to facilities which are provided for washing hands, forearms and the face only.

3. Drinking water

- (1) An adequate supply of wholesome drinking water must be provided or made available at readily accessible and suitable places.
- (2) Where necessary for reasons of health and safety, every supply of drinking water must be conspicuously marked by an appropriate sign.
- (3) Where a supply of drinking water is provided a sufficient number of suitable cups or other drinking vessels must also be provided, unless the supply of drinking water is in a jet from which persons can drink easily.

4. Changing rooms and lockers

- (1) Suitable and sufficient changing rooms must be provided or made available at readily accessible places if a worker:
 - (a) has to wear special clothing for the purposes of construction work; and
 - (b) cannot, for reasons of health or propriety, be expected to change elsewhere.
- (2) Where necessary for reasons of propriety, there must be separate changing rooms for, or separate use of rooms by, men and women.
- (3) Changing rooms must:
 - (a) be provided with seating; and
 - (b) include, where necessary, facilities to enable a person to dry any special clothing and any personal clothing or effects.
- (4) Suitable and sufficient facilities must, where necessary, be provided or made available at readily accessible places to enable persons to lock away:
 - (a) any special clothing which is not taken home
 - (b) their own clothing which is not worn during working hours; and
 - (c) their personal effects.

CONSTRUCTION (DESIGN AND MANAGEMENT) REGULATIONS – APPENDIX C

5. Facilities for rest

- (1) Suitable and sufficient rest rooms or rest areas must be provided or made available at readily accessible places.
- (2) Rest rooms and rest areas must:
 - (a) be equipped with an adequate number of tables and adequate seating with backs for the number of persons at work likely to use them at any one time
 - (b) where necessary, include suitable facilities for any woman at work who is pregnant or who is a nursing mother to rest lying down
 - (c) include suitable arrangements to ensure that meals can be prepared and eaten
 - (d) include the means for boiling water; and
 - (e) be maintained at an appropriate temperature.

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Supporting INFORMATION

GT700 Toolbox talks/supporting guidance documents

Toolbox talks on some of these topics are available in the GT700 publication. Supporting guidance documents covering some of these topics are available on our companion website.



**Scan the QR code to complete a brief survey,
and share your feedback on the course.**

HEALTH AND SAFETY MANAGEMENT SYSTEMS

Overview

Organisations have a legal duty to put in place suitable arrangements to manage health and safety. By law, if a company employs five or more people, they must have a written health and safety policy.

The health and safety policy and associated documents are the basis of the company's health and safety management system. The management system should be specific to the business and detail how the health and safety of employees will be protected whilst at work.

This chapter explains the benefits of a health and safety management system, what it should contain and how it should be used.

4.1 Introduction

The production and implementation of a health and safety management system will be specific to individual companies, based on the level of risk of their operational activities and the environment where the work takes place.



The Health and Safety Executive (HSE) provides a guide to health and safety management systems for leaders, owners and line managers in the free guidance document *Managing for health and safety* (HSG65).

Other health and safety management systems and guidance are available, including ISO 45001:2018. This is an international standard that is intended to be applicable to any organisation, regardless of its size, type and nature; the standard can be used by small, low-risk operations or equally by high-risk and large, complex organisations.

ISO 45001:2018 specifies requirements for an occupational health and safety (OH&S) management system, with guidance for its use, to enable an organisation to proactively improve its OH&S performance in preventing injury and ill health.

The first step to a health and safety management system is to produce the required health and safety policy.



Health and safety policy

A **health and safety policy** is a statement of how a company will, within its overall business, manage health, safety and welfare for the benefit of its employees and all other persons who may be affected by the company's operations.

There is no such thing as a standard health and safety policy, as a company's policy must be clearly and directly related to its own operations. Therefore, the policy will vary from one company to another.

It is common for companies to obtain policies via the internet or purchase them from third parties. These are generic and, although they may cover general health and safety issues, they rarely reflect the type of work that is carried out and may lead a company into a false sense of security. The content of the organisation and arrangements sections of the policy should be specific to each company. If a generic policy is used, and the contents are not further scrutinised and reviewed to suit the company's needs, it is likely that there will be serious omissions in its content and therefore in the way that health and safety is managed.

Each company's policy must be based upon its own work, management and organisational structure, and staff competencies.

The act of compiling a health and safety policy will focus the employer, or senior member of staff to whom the job is delegated, on the day-to-day management of health and safety issues. This will help them to become aware of shortcomings, duplications of effort and requirements for certain competencies, which can then be rectified.

Evidence shows that companies with a well-structured and properly implemented health and safety policy, together with the organisation and arrangements for putting the policy into effect, have much better overall health and safety performance. Clients and pre-tender documentation now regularly require a company not only to have a health and safety policy but also to demonstrate its implementation from the most senior management level downwards.

HSE construction accident statistics show that the main causes of accidents have been the same for the last 20 years. The main types of accident on site remain slips, trips or falls on the same level; injuries while handling, lifting or carrying; falls from height; and being struck by moving objects, including flying or falling objects. In addition work-related ill health statistics are alarmingly high due to lack of awareness and insufficient control measures; further, because symptoms can take years to develop, work-related health issues aren't seen as requiring immediate action. It is through the ongoing development of a company's health and safety policy that shortcomings can be identified and procedures put in place to help eliminate common causes of accidents and reverse this unenviable record.

The HSE's Accident Prevention Advisory Unit has shown that human error is a major contributor in 90% of accidents, 70% of which could have been prevented by management action. A comprehensive and accurate policy is the basis of an effective management system. A small company working on a small site has the same general health and safety responsibilities as a large company working on a large site.

Being on a small site does not mean that workers are any less likely to fall from height or fragile roofs, breathe in dust, be trapped in collapsed excavations, or be struck by falling material or reversing vehicles. There is no difference in the standard of protection required during a house extension compared to that for a major construction project; what is likely to differ is the complexity of the management system.

Health and safety, and the provision of proper welfare facilities, are crucial to the proper running of any building, construction or civil engineering project. They are not an add-on, an extra or an afterthought, but are a basic requirement and important control measure against illness, should be integrated with the normal day-by-day work of project planning, tendering and management, and are a shared duty from client to end user.

4.2 Important points

- The Health and Safety at Work etc. Act 1974 (HSWA) requires every employer to have a policy on how health and safety will be managed within the company.
- Organisations have a legal duty to put in place suitable arrangements to manage health and safety.
- The health and safety management system should explain how matters of health and safety will be organised within the company and the arrangements that the company has put in place for implementation.
- The health and safety management system and policy should be periodically reviewed to ensure that they are still current, and amended when necessary, with the content and changes made available to all employees.
- Before issuing contracts, clients and principal contractors will often make it a contractual requirement to see a written copy of each contractor's health and safety policy so that an assessment of their health and safety competency can be made, even if the contractor has fewer than five employees and there is no legal need to have one. Contractors will have to comply if they want the work.
- The health and safety policy should be based on a recognised health and safety management system (such as that outlined in HSG65 or similar).
- The health and safety policy needs to be company specific and should be written in consultation with the company's employees.
- If there are five or more employees, the policy must be written down.
- 'Off the shelf' health and safety policies, obtained from third parties, are unlikely to contain sufficient company-specific content.
- The health and safety management system and policy will have little value unless they are communicated to relevant employees.

Whether working as a principal contractor or as a contractor, companies must be able to demonstrate how they effectively manage health and safety. If the company cannot demonstrate competence in health and safety issues, it will impact on winning work and repeat business. It is no longer acceptable to simply state that the company has been in the industry for many years without experiencing an accident.

4.2.1 Competent person

A competent person is someone who has sufficient training and experience or knowledge, in addition to other qualities, that allows them to properly assist. The level of competence will depend on the complexity of the situation and the particular help required.

Health and safety law requires that every employer has access to competent health and safety advice, which in practical terms means that the employer must:

- be competent to manage relevant health and safety issues themselves, and/or
- have an employee who is, or (if there isn't anyone within the organisation)
- bring in external expertise.

Competence can be described as a combination of skills, knowledge, attitude (which includes the positive behaviours of individuals), training and experience that a person has, and their ability to use them.

Skills	The ability to perform a specific task to a desired standard, time after time.
Knowledge	Understanding how to do the job, to the extent it can be explained to others.
Attitude	Having the right approach and behaviours.
Training	Gained knowledge, instruction and information.
Experience	Gained over a period of time in the workplace (not just theoretical).

This can be referred to as **SKATE**. (Physical attributes and mental attitudes can also affect someone's competence.)

A **principal contractor** will have to satisfy the client and the principal designer that they are competent as an organisation to carry out their legal duties. This will include taking into account the competence of their employees, contractors and self-employed persons who will be carrying out the work.

HEALTH AND SAFETY MANAGEMENT SYSTEMS

A **contractor working for a principal contractor** will have to satisfy the principal contractor that they themselves, their employees and any other people they bring onto site (such as sub-contractors) are competent to do the work they have been contracted to do, as well as provide specific evidence of this.

Contractors have to satisfy themselves of their own competence, that of their employees and any other people they bring onto site (such as sub-contractors).

4.3 The business case

In addition to the legal considerations (for example, compliance with the law) there are strong economic and social drivers for a robust health and safety management system and policy.

The economic argument is that if there are fewer accidents on site and no occupational ill health, more employees will be at work rather than off sick. This means improved business continuity with a greater prospect of completing projects on time, to budget and to the satisfaction of the client.

The social argument is similar. Clients and customers are far more likely to place business with a company who they see is behaving with integrity, and taking proper care of the health, safety and welfare of their employees and others who might be affected by the work of the company.

Clients, in particular Local Authority clients, assessing the competence of small companies that are seeking entry onto approved lists will be looking for evidence of effective health and safety management. Some Local Authorities use a standard questionnaire, which asks companies to provide comprehensive details of the following.

- The competent person who provides health and safety advice.
- Its general policy on health and safety, its organisation and arrangements for implementing the policy.
- Training provision and training providers.
- Accident statistics.
- Arrangements for distributing new health and safety information.
- Examples of risk assessments.
- Arrangements for liaison with clients.
- Management arrangements (such as audits and inspection reports).
- Health surveillance (where applicable).
- Arrangements for assessing contractors.
- Where applicable, the ability to undertake roles under the Construction (Design and Management) Regulations 2015 (CDM).

A well-structured health and safety management system and policy will provide a great deal of this information, and any additional information needed can easily be incorporated as an annexe to the policy.

If a company is successful in gaining entry onto an approved list for one Local Authority, it will then be much easier to seek similar approval from other authorities.

4.4 Health and safety management systems

Effective health and safety management systems have been developed over a number of years within many industries. The methodology and language used in these systems may seem very different, as they can suit a wide range of industries, but the key actions in all systems are based on the principles of **Plan, Do, Check, Act**.

Two of the common systems in use, **ISO 45001:2018** and **HSG65**, are outlined below.

4.4.1 ISO 45001:2018

The international standard that is now recognised by all major clients and contractors is ISO 45001:2018 (published on 12 March 2018). With this release, OHSAS 18001 was withdrawn.

This is an internationally applied standard for OH&S management systems and its implementation demonstrates sound occupational health and safety performance. It has been developed by international collaborative groups comprising representatives from national standards bodies, academic bodies, accreditation bodies, certification bodies and occupational safety and health institutions, with the international standards body (ISO – the International Organization for Standardization) providing the administration of the standard. ISO is an independent, non-governmental international organisation with a membership of 167 national standards bodies.

Through its industry or sector-based standards organisations, it brings together experts to share knowledge and develop voluntary, consensus-based, market relevant international standards that support innovation and provide solutions to global challenges.

ISO 45001:2018 OH&S management system is the world's first OH&S international standard that is intended to help thousands of organisations to provide a safe and healthy workplace for their workers and other people, to prevent deaths, work-related injuries and ill health, and to continually improve its OH&S performance. The standard is applicable to any organisation, regardless of its size, type and activities. It is applicable to the OH&S risks under the organisation's control, taking into account factors such as the context in which the organisation operates and the needs and expectations of its workers and other interested parties.

ISO 45001:2018 specifies requirements for an OH&S management system, and gives guidance for its use, to enable organisations to provide safe and healthy workplaces, by prevention of work-related injury and ill health, as well as proactively improving OH&S performance. The standard enables an organisation, through its OH&S management system, to integrate other aspects of health and safety, such as worker wellness or wellbeing. However, it should be noted that organisations may be required by applicable legal requirements to also address such issues.

ISO 45001:2018 can be integrated with other management systems within the company, including quality standard BS ISO 9001 and environmental management standard BS ISO 14001.

4.4.2 Managing for health and safety (HSG65)

The HSE has developed and revised guidance on health and safety management systems, a document commonly known as HSG65.

Organisations have a legal duty to put in place suitable arrangements to manage health and safety. This guidance provides a framework to help organisations do that effectively, in a way that every organisation can tailor to its own circumstances. The latest version is behavioural based and should be an integral part of a company's management system.

The current HSG65, *Managing for health and safety*, is the first action for delivering effective health and safety arrangements for the company health and safety policy and is based on the Plan, Do, Check, Act model.

HSG65 will assist owners, trustees and line managers in putting the right measures in place to manage the real risks to health and safety in an organisation. It can help you achieve a balance between the systems and behavioural aspects of management. It also treats health and safety management as an integral part of good management generally, rather than as a standalone system.



Part 1 gives the core elements of managing health and safety and how they can fit into running the business.

Part 2 suggests what to look for when deciding what needs to be included.

Part 3 gives advice on delivering effective arrangements. It is particularly useful for those who put in place or oversee their organisation's arrangements for health and safety (for example, health and safety managers).

Part 4 signposts resources from the HSE and other organisations. Short *Find out more* lists provide relevant sources of advice throughout the guidance.

There is sufficient significant detail in the document to produce a company-specific health and safety management system, and to know how to include relevant content and arrangements for controls, how to carry out checks and measure performance, how to review performance and how to take action on lessons learned.

HSG65 guidance provides a framework for meeting the legal requirements, based on the following key elements.

Plan. To implement your policy, an effective health and safety management system will need to be established and maintained.

Do. Delivery depends on an effective management system to ensure, so far as is reasonably practicable, the health and safety of employees and other people affected by work activities.

Check. To monitor and report on health and safety arrangements and the performance of the health and safety policy.

Act. To review health and safety management systems, to ensure they are effective in managing risk and protecting people.

Details of these elements are covered in the following pages.



For a free guidance document for leaders, owners and line managers on health and safety management systems, *Managing for health and safety* (HSG65), visit the HSE's website.

4.5 Plan (Setting standards)

In order to develop or implement plans, or set standards, companies should be sufficiently competent in health and safety to know what the law requires, and how to interpret those requirements into safe and healthy working practices.

The aim of any health and safety management system must be to prevent injuries, occupational disease and near misses from occurring and to improve health and safety engagement and worker consultation. To achieve this, employers must take the following actions (*listed overleaf*).



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- Commit themselves to proactively managing the health and safety aspects of their work activities.
- Actively involve employees in the health and safety decision making process and maintain their interest.
- Recognise areas of health and safety weakness.
- Select appropriate actions to overcome those weaknesses.
- Ensure that sufficient resources (time, competent people and money) are in place to implement the actions.
- Implement the actions and make sure they are complied with.
- Monitor the results to establish if improvements can be made.
- Review the plan at least annually, or as a result of an incident or a worker bringing something to the employer's attention.
- Investigate when things go wrong to prevent them from happening again.

Ultimately, the effectiveness of the plans will depend upon the assessment and control of the risks to health and safety that arise from the employer's work activities. Health and safety must be proactively managed, in the same way that good supervisors and managers will manage people, quality and productivity.



Clearly define and set the direction for effective health and safety management within your company.

A health and safety policy that sets a clear direction will help to communicate health and safety duties and responsibilities throughout the organisation, and highlight the benefits of effective health and safety management.

4.5.1 Determining and setting the policy

HSWA states that all employers who employ five or more people to have a written statement of their general health and safety policy. This will include details of the necessary organisation, arrangements for implementing the health and safety policy and arrangements for controlling the organisation's day-to-day health and safety risks. The five employees include any person who is directly affected by the activities of the company (for example, trainees, apprentices, office staff and some self-employed people who are contracted for paid work under the management of the employer).

Even if someone is self-employed or employs fewer than five people, the law still requires them to:



- **have a health and safety policy, even if it is not written down**
- **manage their work in such a way as to protect the health and safety of themselves, those working for them, and anyone else who may be affected by their work.**

The starting point for all health and safety must be a clear policy statement. This will inform employees of the company's intentions towards the health, safety and welfare of the workforce and the standards to which they aspire.

Managing health and safety at work is a **legal requirement** and must always be an integral part of any business activity.

Section 2(3) of HSWA states that a health and safety policy should cover three distinct aspects.

1. A **general statement of health and safety policy**, specific to the company's business needs, setting the company's intentions and commitment to managing health and safety, and highlighting the intent of the employer to have high standards of health and safety in the company, including what they intend to achieve and how they will achieve it.
2. The **organisation** within the company for the effective implementation and maintenance of the health and safety management system; an organisational structure that shows the responsibility tree (some larger companies may have one for each site).
3. The **arrangements** for the effective implementation and ongoing monitoring of the health and safety management system; the arrangements will explain the duties of each position on the responsibility tree. For many companies, the arrangements section will evolve over time and with the needs of the business.

4.5.1.1 Safety policy (organisation and arrangements)

Every employer with five or more employees must have a written statement of their general policy on health and safety at work, together with details of the organisation ('the who') and arrangements necessary to put the commitment into practice ('the how'). Employers must ensure the policy is clearly displayed or give a copy of it to each employee and ensure that it is fully understood. Employers with fewer than five employees must formulate how they will proactively manage health and safety as an integral part of their work activities. (There is no reason why a company with fewer than five employees should not have a written health and safety policy.)

A policy should describe the following in full.

- The known and foreseeable risks (as stated in the organisation's risk profile).
- How the company is going to set up and maintain a safe and healthy working environment.
- What health and safety responsibilities already exist.